



CHAPTER cxliii.

An Act to confer additional powers upon the Midland Railway Company and the Cheshire Lines Committee for the construction of works and upon that Company and Committee and the Midland and Great Northern Railways Joint Committee for the acquisition of lands and for other purposes. A.D. 1914.
[7th August 1914.]

WHEREAS it is expedient that the Midland Railway Company (in this Act called "the Company") should be empowered to construct and maintain the railways and other works and to exercise the other powers in this Act mentioned and also to acquire retain hold and use lands for the purposes of this Act and for extending their station siding warehouse coal-wharf depôt mineral goods and other accommodation and for other purposes connected with their undertaking:

And whereas it is expedient that the Midland and Great Northern Railways Joint Committee (in this Act called "the Joint Committee") should be empowered to acquire the lands in this Act mentioned in that behalf:

And whereas it is expedient that the Cheshire Lines Committee (in this Act called "the Committee") should be empowered to construct the work to exercise the powers and to acquire the lands in this Act mentioned in that behalf:

And whereas plans and sections showing the lines and levels of the railways and other works by this Act authorised and plans showing the lands required or which may be taken for the purposes or under the powers of this Act and also books of reference to those plans containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the said lands were duly deposited with the clerks of the peace

A.D. 1914. — for the several counties riding and division within which the said railways and other works will be made or the said lands are situate and those plans sections and books of reference are in this Act referred to as the deposited plans sections and books of reference respectively :

And whereas it is expedient that the Company and the other railway companies in this Act mentioned in that behalf should be empowered to enter into agreements as provided by this Act and to apply their funds for the purposes of any such agreement :

And whereas it is expedient that the agreement set forth in the First Schedule to this Act should be sanctioned and confirmed :

And whereas the Company exclusively man work maintain and manage the railway of the Tottenham and Forest Gate Railway Company (in this Act called "the Tottenham Company") and the whole of the ordinary shares of the Tottenham Company are held by the Company and the payment of the interest on the whole of the guaranteed preference and loan capital of the Tottenham Company is guaranteed and made by and forms a charge upon the revenue of the Company and it is expedient that the provisions herein-after contained relating to the management of the undertaking of the Tottenham Company should be made :

And whereas it is expedient that the time prescribed by section 21 of the Midland Railway (London Tilbury and Southend Railway Purchase) Act 1912 whereby the Company are required to apply to Parliament for any necessary powers for carrying out the scheme of electrification therein referred to should be extended :

And whereas it is expedient that the time limited by the Cheshire Lines Act 1903 as extended by the Midland Railway Act 1911 for the completion of the railways authorised by the said Act of 1903 should be extended as provided by this Act :

And whereas the powers conferred upon the Rotherham Maltby and Laughton Railway Company by the Rotherham Maltby and Laughton Railway Act 1905 are now vested in the Great Central and Midland Joint Committee and it is expedient that the powers granted by the said Act of 1905 as extended by the Midland Railway Act 1911 for the compulsory purchase of lands for the purposes of Railways Nos. 1A 1B and 1C authorised by the said Act of 1905 should be revived and

extended and that the time limited by the said Acts for the completion of those railways should be extended as provided by this Act: A.D. 1914.

And whereas it is expedient that the London and North Western and Midland Joint Committee should be empowered to abandon and discontinue the maintenance and use of the railway and portion of railway in this Act mentioned in that behalf:

And whereas it is expedient that further powers should be conferred upon the Company and upon any joint committee incorporated by Act of Parliament of the Company and any other company or companies or any joint committee so incorporated on which the Company is represented with respect to the leasing or other disposal of lands acquired by the Company or any such joint committee respectively which are not or eventually may not be required for the purposes for which they may have been so acquired:

And whereas it is expedient that some of the powers and provisions of existing Acts relating to the Company should be amended and that further powers should be conferred upon the Company as provided by this Act:

And whereas it is expedient that the Company should be empowered to raise additional capital for the purposes of the railways and works by this Act authorised and for other purposes of this Act and for the general purposes of their undertaking and to apply their funds to such purposes:

And whereas it is expedient that the Company should be empowered to issue warrants and certificates to bearer for stock or shares or debenture stock and that the provisions in this Act contained with respect to such warrants and certificates and the bearers thereof should be made:

And whereas it is expedient that the Joint Committee the Committee the Great Central Railway Company and the Great Northern Railway Company should respectively be empowered to apply their funds to the purposes of this Act in which they are respectively interested:

And whereas the objects of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal

A.D. 1914. and Commons in this present Parliament assembled and by the authority of the same as follows:—

Short title. **1.** This Act may be cited for all purposes as the Midland Railway Act 1914.

Incorporation of general Acts. **2.** The following Acts and parts of Acts are (except where expressly varied by this Act) incorporated with and form part of this Act (that is to say):—

The Lands Clauses Acts:

The Railways Clauses Consolidation Act 1845:

Part I. (relating to the construction of a railway) and Part II. (relating to extension of time) of the Railways Clauses Act 1863:

The provisions of the Companies Clauses Consolidation Act 1845 with respect to the following matters namely:—

The transfer or transmission of shares;

The borrowing of money by the Company on mortgage or bond:

And Part II. (relating to additional capital) and Part III. (relating to debenture stock) of the Companies Clauses Act 1863 as amended by subsequent Acts.

Interpretation.

3. In this Act unless there be something in the subject or context repugnant to such construction the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings And—

The expression “the railways” means the railways by this Act authorised;

The expressions “parish clerks” and “clerks of the several parishes” in sections 7 8 and 9 of the Railways Clauses Consolidation Act 1845 shall as regards the administrative county of London mean the town clerks of the metropolitan boroughs;

The expression “local authority” in its application to Ireland means the council of any urban or rural district.

Deposit of plans with clerks of district councils in Ireland.

4. The provisions of sections 7 8 and 9 of the Railways Clauses Consolidation Act 1845 shall for the purposes of this Act be read and construed as if the expression “clerks of the district” “councils of the districts within which such parishes are included” “in Ireland” or the words “clerks of the district councils” (as

the case may be) had been inserted in those sections in lieu of the expression "the postmasters of the post towns in or nearest to such parishes in Ireland" or in lieu of the word "postmasters" (as the case may be). A.D. 1914.

5. The provisions of sections 18 to 23 of the Railways Clauses Consolidation Act 1845 shall for the purposes of this Act extend and apply to the water and gas mains pipes and apparatus of any local authority and shall be construed as if "local authority" were mentioned in those sections in addition to "company" or "society" Provided that any penalties recovered under section 23 shall be appropriated to that fund of the local authority to which their revenues in respect of water or gas (as the case may be) are appropriated. Protection of gas and water mains of local authorities.

6. Subject to the provisions of this Act the Company may make and maintain in the lines and according to the levels shown on the deposited plans and sections the railways herein-after described with all proper approaches stations sidings works and conveniences connected therewith and may enter upon take and use such of the lands delineated on those plans and described in the deposited books of reference relating thereto as may be required for those purposes or for providing accommodation for persons belonging to the working class who may be displaced in executing the powers of this Act or any other Act relating to the Company. Power to Company to make railways.

The railways herein-before referred to and authorised by this Act are—

Stepney and Bromley Railway :—

A railway (to be called and in this Act referred to as "the Stepney and Bromley Railway") (1 mile 4 furlongs in length) situate wholly in the county of London commencing in the parish of Ratcliff in the metropolitan borough of Stepney by a junction with the London and Blackwall Railway and terminating in the parish of Bromley Saint Leonard in the metropolitan borough of Poplar by a junction with the Company's railway from gas factory junction to Barking.

Hornchurch Curve :—

A railway (to be called and in this Act referred to as "the Hornchurch Curve") (3 furlongs 3·30 chains in length)

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situate wholly in the parish of Hornchurch in the rural district of Romford in the county of Essex commencing by a junction with the Company's railway from Barking to Pitsea and terminating by a junction with the Company's Romford Branch Railway.

Barking and Upminster Widening:—

A railway (to be called and in this Act referred to as "the Barking and Upminster Widening") (7 miles 6 furlongs 5·20 chains in length) situate wholly in the county of Essex commencing in the parish of Barking in the urban district of Barking Town by a junction with the Company's Barking and Pitsea Railway and terminating in the parish of Upminster in the rural district of Romford by a junction with the said railway.

Coleraine Deviation:—

A railway (to be called and in this Act referred to as "the Coleraine Deviation") (5 furlongs 4·5 chains in length) situate wholly in the county of Londonderry commencing in the parish of Killowen in the rural district of Coleraine by a junction with the Company's Belfast and Northern Counties Railway from Coleraine to Londonderry at or near the south-east face of the bridge which carries the road leading from Institution Road to the River Bann over the said railway and terminating in the parish of Coleraine in the urban district of Coleraine by a junction with the Company's railway from Ballymena to Portrush at a point 9 chains or thereabouts measured in a northerly direction from the north-west corner of the up platform at Coleraine Station:

And the Company may after the opening for public traffic of the Coleraine Deviation abandon and discontinue the maintenance and use of so much of the existing railway of the Company as lies between the point of commencement of the said deviation railway and the point of junction with the said existing railway of Railway No. 2 authorised by the River Bann Navigation Act 1885 and may subject to the provisions of this Act appropriate for the general purposes of their undertaking the site and soil thereof to the extent to which the same belongs to them and any works thereon or may sell lease or otherwise dispose of the same.

7. The provisions of the indenture of agreement dated the eighth day of April one thousand eight hundred and seventy-three and made between the Belfast and Northern Counties Railway Company of the one part and the Postmaster-General of the other part shall apply to the Coleraine Deviation. Provided that before any portion of the said existing railway of the Company is abandoned and discontinued under the last preceding section all telegraphs of the Postmaster-General existing on along or across such portion as aforesaid shall (if required by the Postmaster-General) be at the Company's expense removed therefrom and placed on along or across (as the case may be) the Coleraine Deviation and the Company shall give reasonable notice to the Postmaster-General before abandoning or discontinuing any portion of the said existing railway on along or across which such telegraphs as aforesaid exist.

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Application
of certain
agreement to
Coleraine
Deviation.

8. The railways (other than the Coleraine Deviation) shall for the purposes of maximum rates and charges for merchandise traffic (including perishable merchandise by passenger train) be part of the railway of the Company as if the same had been part of the Midland Railway at the date of the passing of the Midland Railway Company (Rates and Charges) Order Confirmation Act 1891 and shall for all other purposes be part of the undertaking of the Company as authorised by the Midland Railway Consolidation Act 1844.

Rates and
charges for
railways in
England.

9. The Company may charge for every passenger conveyed upon the Stepney and Bromley Railway including every expense incidental to such conveyance any sum not exceeding that authorised to be taken for the conveyance of passengers on the London and Blackwall Railway.

Fares for
passengers
and pas-
sengers'
luggage on
Stepney and
Bromley
Railway.

Every passenger travelling upon the Stepney and Bromley Railway may take with him his ordinary luggage not exceeding one hundred and fifty pounds in weight for first-class passengers one hundred and twenty pounds in weight for second-class passengers and one hundred pounds in weight for third-class passengers without any charge being made for the carriage thereof.

10. The Hornchurch Curve and the Barking and Upminster Widening shall for the purposes of passenger fares the conveyance of small parcels by passenger train and passengers' luggage be

Fares for
passengers
&c. on Horn-
church Curve

A.D. 1914. deemed to form part of the London Tilbury and Southend Railway of the Company Provided that for the purposes of section 32 of the London Tilbury and Southend Railway Act 1882 the Barking and Upminster Widening shall be deemed to be part of the Barking and Pitsea Railway by the said Act authorised.

Rates and charges for Coleraine Deviation. **11.** The Coleraine Deviation shall for the purposes of maximum rates and charges for merchandise traffic (including perishable merchandise by passenger train) be part of the Belfast and Northern Counties Railway of the Company as if the same had been part of that railway at the date of the passing of the Railway Rates and Charges No. 26 (Athenry and Ennis Junction Railway &c.) Order Confirmation Act 1892 and shall for all other purposes be part of the Belfast and Northern Counties Railway undertaking of the Company.

Limits of deviation of railways. **12.** In constructing the railways and works in connexion therewith the Company may deviate laterally from the lines thereof as shown on the deposited plans to any extent not exceeding the limits of deviation shown on those plans and may deviate vertically from the levels of the railways and works as shown on the deposited sections in accordance with the provisions of the Railways Clauses Consolidation Act 1845.

Height of bridges. **13.** The Company may make the arches of the bridges for carrying the railway herein-after mentioned over the roads next herein-after mentioned of any heights not less than the heights herein-after mentioned in connexion therewith respectively (that is to say):—

No. on deposited Plan.	Area.	Description of Road.	Height.
	STEPNEY AND BROMLEY RAILWAY.		Ft. Ins.
9	Metropolitan borough of Stepney.	Public - - -	13 9
186	Metropolitan borough of Poplar.	Public - - -	12 6

Power to divert roads and footpaths. **14.** The Company may divert the roads and footpaths referred to in the next following table in the manner shown upon the deposited plans and sections and subject to the provisions of this Act may stop up and cause to be discontinued as a road or footpath so much of each existing road or footpath as will

be rendered unnecessary by the new portion of road or footpath so shown on the said plans (that is to say):— A.D. 1914.

Railway.	Area.	No. of Road or Footpath on Plan.
Stepney and Bromley Railway.	Metropolitan borough of Stepney.	203
	Metropolitan borough of Poplar.	7
	Metropolitan borough of Poplar.	123
Barking and Upminster Widening.	Urban district of Barking Town.	17
	Parish of Dagenham - -	2
	Parish of Dagenham - -	25 25A 26
	Parish of Dagenham - -	25 25B 26
	Parish of Hornchurch - -	12 13
	Parish of Cranham - -	5

Provided that the new portion of any road in the administrative county of London shall be made of a width not less than the maximum width of the road stopped up.

15. The Company may stop up so much of the road known as Kirk's Place as is within the limits of deviation of the Stepney and Bromley Railway and thereupon all rights of way over that portion of road shall be extinguished but such portion of road shall not be stopped up unless the Company are owners in possession of all houses and lands on both sides thereof except so far as the owners lessees and occupiers of those houses and lands may otherwise agree and the Company may subject to the provisions of the Railways Clauses Consolidation Act 1845 with respect to mines lying under or near to the railway appropriate and use for the purposes of their undertaking the site of the portion of road so stopped up: Power to stop up road.

Provided that the Company shall make full compensation to all parties interested in respect of any private rights of way extinguished by virtue of this section and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement.

16. Notwithstanding anything contained in section 46 of the Railways Clauses Consolidation Act 1845 the Company shall not be liable to maintain the surface of any road or public highway which shall be carried over any railway by this Act authorised by a bridge or bridges or the immediate approaches thereto except so far as the level of such road public highway or approaches is permanently altered so as to increase the gradient. Company not bound to maintain surface of roads &c. unless level permanently altered.

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Period for
completion
of railways.

17. If the railways (other than the Barking and Upminster Widening) are not completed within five years from the passing of this Act then on the expiration of that period the powers by this Act granted to the Company for making and completing the said railways or otherwise in relation thereto shall cease except as to so much thereof as is then completed.

Imposing
penalty
unless rail-
ways opened.

18. If the Company fail within the period limited by this Act to complete the railways (other than the Barking and Upminster Widening and the Coleraine Deviation) the Company shall be liable to a penalty of fifty pounds a day for every day after the expiration of the period so limited until the uncompleted railway or railways is or are completed and opened for the public conveyance of passengers or until the sum received in respect of such penalty amounts to five per centum on the estimated cost of the uncompleted railway or railways.

The said penalty may be applied for by any landowner or other person claiming to be compensated or interested in accordance with the provisions of the next following section of this Act and in the same manner as the penalty provided in the third section of the Railway and Canal Traffic Act 1854.

Every sum of money recovered by way of such penalty as aforesaid shall be paid under the warrant or order of such court or judge as is specified in that section to an account opened or to be opened in the name of the Paymaster-General for and on behalf of the Supreme Court in the bank and to the credit specified in such warrant or order and shall not be paid thereout except as herein-after provided.

But no penalty shall accrue in respect of any time during which it shall appear by a certificate to be obtained from the Board of Trade that the Company were prevented from completing or opening the uncompleted railway or railways by unforeseen accident or circumstances beyond their control. Provided that the want of sufficient funds shall not be held to be a circumstance beyond their control.

Application
of penalty.

19. Every sum of money so recovered by way of penalty as aforesaid shall be applicable and after due notice in the London Gazette shall be applied towards compensating any landowners or other persons whose property has been interfered with or otherwise rendered less valuable by the commencement construction or abandonment of the railway or railways in respect of which the penalty has been incurred or any portion thereof or who have

been subjected to injury or loss in consequence of the compulsory powers of taking property conferred upon the Company by this Act for the purposes of such railway or railways and for which injury or loss no compensation or inadequate compensation has been paid and shall be distributed in satisfaction of such compensation as aforesaid in such manner and in such proportions as to the High Court may seem fit. A.D. 1914.

If no such compensation is payable or if a portion of the sum or sums of money so recovered by way of penalty as aforesaid has been found sufficient to satisfy all just claims in respect of such compensation then the said sum or sums of money recovered by way of penalty or such portion thereof as may not be required as aforesaid shall if a receiver has been appointed or the Company is insolvent or the railway or railways in respect of which the penalty has been incurred or any part thereof has been abandoned be paid or transferred to such receiver or be applied in the discretion of the court as part of the assets of the Company for the benefit of the creditors thereof and subject to such application shall be repaid or re-transferred to the Company.

20. And whereas in order to avoid in the execution and maintenance of any works authorised by this Act injury to the houses and buildings within one hundred feet of any railway by this Act authorised it may be necessary to underpin or otherwise strengthen the same Therefore the Company at their own costs and charges may and if required by the owners or lessees of any such house or building shall subject as herein-after provided underpin or otherwise strengthen the same and the following provisions shall have effect (that is to say):— Underpinning of houses near railways.

- (1) At least ten days' notice shall unless in case of emergency be given to the owners lessees and occupiers or by the owners or lessees of the house or building so intended or so required to be underpinned or otherwise strengthened:
- (2) Each such notice if given by the Company shall be served in manner prescribed by section 19 of the Lands Clauses Consolidation Act 1845 and if given by the owners or lessees of the premises to be underpinned or strengthened shall be sent to the principal office of the Company:
- (3) If any owner lessee or occupier of any such house or building or the Company as the case may require

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shall within seven days after the giving of such notice give a counter notice in writing that he or they as the case may be disputes the necessity of such underpinning or strengthening the question of the necessity shall be referred to the arbitration of an engineer to be agreed upon or in case of difference appointed at the instance of either party by the Board of Trade and the Arbitration Act 1889 shall apply to the reference :

- (4) The arbitrator shall forthwith upon the application of either party proceed to inspect such house or building and determine the matter referred to him and in the event of his deciding that such underpinning or strengthening is necessary he may and if so required by such owner lessee or occupier shall prescribe the mode in which the same shall be executed and the Company may and shall proceed forthwith so to underpin or strengthen the said house or building :
- (5) The Company shall be liable to compensate the owners lessees and occupiers of every such house or building for any inconvenience loss or damage which may result to them by reason of the exercise of the powers granted by this enactment :
- (6) If in any case in which any house or building shall have been underpinned or strengthened on the requisition of the Company such underpinning or strengthening shall prove inadequate for the support or protection of the house or building against further injury arising from the execution or maintenance of the works of the Company then and in every such case unless such underpinning or strengthening shall have been done in pursuance of and in the mode prescribed by the referee the Company shall make compensation to the owners lessees and occupiers of such house or building for such injury provided the claim for compensation in respect thereof be made by such owners within twelve months and by such lessees or occupiers within six months from the discovery thereof :
- (7) Nothing in this enactment contained nor any dealing with any property in pursuance of this enactment

shall relieve the Company from the liability to compensate under section 68 of the Lands Clauses Consolidation Act 1845 or under any other Act: A.D. 1914.

(8) Every case of compensation to be ascertained under this enactment shall be ascertained according to the provisions of the Lands Clauses Acts:

(9) Nothing in this section shall repeal or affect the application of section 92 of the Lands Clauses Consolidation Act 1845.

21.—(1) If and when the Company shall acquire any portion of the burial ground of the City of London and Tower Hamlets Cemetery Company in the metropolitan borough of Stepney they shall before applying or using any part thereof for any of the purposes of this Act remove or cause to be removed the remains of all deceased persons interred in the said burial ground and which will be disturbed or interfered with by the Company's operations. Removal of human remains.

(2) Before proceeding to remove any such remains the Company shall publish a notice for three successive days in two local newspapers circulating in the said metropolitan borough to the effect that it is intended to remove such remains and such notice shall have embodied in it the substance of subsections (3) (4) (5) (6) and (7) of this section.

(3) Any time within two months after the first publication of such notice any person who is an heir executor administrator or relative of any deceased person whose remains are interred in the said burial ground may give notice in writing to the Company of his intention to undertake the removal of such remains and thereupon he shall be at liberty without any faculty for the purpose but subject as herein-after mentioned to any regulations made by the bishop of the diocese of London to cause such remains to be removed to and re-interred in any consecrated burial ground or cemetery in which burials may legally take place.

(4) If any person giving such notice as aforesaid shall fail to satisfy the Company that he is such heir executor administrator or relative as he claims to be the question shall be determined on the application of either party in a summary manner by the registrar of the consistory court of the diocese of London who shall have power to make an order specifying who shall remove the remains.

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(5) The expense of such removal and re-interment (not exceeding in respect of remains removed from any one grave the sum of ten pounds) shall be defrayed by the Company such sum to be apportioned if necessary equally according to the number of remains in the grave.

(6) If within the aforesaid period of two months no such notice as aforesaid shall have been given to the Company in respect of the remains in any grave or if after such notice has been given the persons giving the same shall fail to comply with the provisions of this section and with any regulation of the said bishop the Company may without any faculty for that purpose remove the remains of the deceased person and cause them to be interred in such other consecrated burial ground or cemetery in which burials may legally take place as the Company think suitable for the purpose subject to the consent of the said bishop.

(7) All monuments and tombstones relating to the remains of any deceased person removed under this section shall at the expense of the Company be removed and re-erected at the place of re-interment of such remains or at such place within the said metropolitan borough as the said bishop may direct on the application (if any) of such heir executor administrator or relative as aforesaid or failing such application on the application of the Company and the Company shall cause to be made a record of such monuments and tombstones and of their situation when re-erected showing the particulars respecting each monument or tombstone as a separate entry and such record shall be deposited at the General Register Office Somerset House London with the miscellaneous records in the custody of the Registrar-General.

(8) The removal of the remains of any deceased person under this section shall be carried out under the supervision and to the satisfaction of the medical officer of health of the said metropolitan borough.

Working &c.
agreements.

22.—(1) The Company on the one hand and the Metropolitan District Railway Company the London Electric Railway Company and the Whitechapel and Bow Railway Company or any of them on the other hand may enter into and carry into effect agreements with respect to the following purposes or any of them (that is to say):—

The management and maintenance of the Hornchurch Curve and the Barking and Upminster Widening or either of them or any part thereof respectively:

The use and working of the said railways or either of them or of any part or parts thereof respectively and the conveyance of traffic thereon: A.D. 1914.

The supply and maintenance by the working party under and during the continuance of any such agreement as aforesaid for the working of the said railways or either of them or any part or parts thereof respectively of rolling stock plant apparatus and machinery necessary or convenient for the purposes of such agreement:

The equipment of the said railways or either of them or any part or parts thereof respectively:

The payments to be made under any such agreement and the fixing subject to the authorised maximum rates and the collection and apportionment of the tolls rates and charges levied taken or arising in respect of traffic and the division and apportionment of the receipts and profits arising therefrom.

(2) The Company on the one hand and the Metropolitan District Railway Company and the London Electric Railway Company or either of them on the other hand may enter into and carry into effect agreements and arrangements with respect to the supply of electrical energy for the purpose of working the said railways or either of them or any part thereof by electrical power and as to the payments to be made and the conditions to be performed with reference to such supply.

(3) The provisions of section 26 of the Railways Clauses Act 1863 shall apply to and for the purposes of any agreement entered into under the provisions of this section.

(4) The Metropolitan District Railway Company the London Electric Railway Company and the Whitechapel and Bow Railway Company may respectively apply to the purposes of this section to which capital is properly applicable any moneys which they now have in their hands or which they have power to raise by shares stock debenture stock or mortgage and which may not be required for the purposes to which they are made specially applicable by any Act relating to any such Company.

(5) The provisions of section 45 (For protection of Postmaster-General) of the London Tilbury and Southend Railway Act 1902 and of section 11 (For protection of Postmaster-General) of the London Tilbury and Southend Railway Act 1911

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(6) The provisions of section 12 (For protection of Postmaster-General) of the Metropolitan District Railway Act 1901 or of section 76 (For protection of Postmaster-General) of the Charing Cross Euston and Hampstead Railway Act 1902 as the case may be shall extend to the supply to the Company of electrical energy by the Metropolitan District Railway Company or the London Electric Railway Company under any agreement or arrangement entered into under the provisions of this section and to any works constructed by either of such companies elsewhere than on property of the Company for the purposes of such supply of energy.

Saving for
Postmaster-
General.

23. Nothing in any agreement made under the authority of this Act shall affect the rights of His Majesty's Postmaster-General under the Telegraph Act 1878 to place and maintain telegraphic lines in under upon along over or across the Hornchurch Curve and the Barking and Upminster Widening or any part thereof and from time to time to alter such telegraphic lines and to enter upon the land and works comprised in such undertaking for the purposes in the Telegraph Act 1878 specified and the Postmaster-General shall after the making of any such agreement be at liberty to exercise all the rights aforesaid notwithstanding that the Hornchurch Curve and the Barking and Upminster Widening or any part thereof is worked by the Metropolitan District Railway Company as freely and fully in all respects as he was entitled to do before the making of any such agreement.

For pro-
tection of
Royal Ob-
servatory
Greenwich.

24. If the Admiralty are of opinion that the generation or use by the Company of electrical energy for the purpose of working the Stepney and Bromley Railway injuriously affects or is likely to injuriously affect any instrument or apparatus in or adjacent to the Royal Observatory at Greenwich including the Magnetic Pavilion or the efficient working of such instrument or apparatus the Admiralty may after such inspection and inquiry as they think proper require that the Company shall use such precautions including insulated returns as the Admiralty may deem necessary for the prevention of such injurious affection and the Company shall forthwith comply with such requisition For the purpose of this section any

person authorised in writing by the Admiralty shall have access at all reasonable times to the works and apparatus of the Company who shall give all due facilities for the inspection. Provided always that in the event of any instrument or apparatus hereafter used in the said observatory which may be of a different character and of materially greater delicacy than those used therein at the passing of this Act the Admiralty shall consider and may in their discretion determine to what extent the powers of this section should be exercised regard being had to the interests of the public as well as to the purposes of the instruments or apparatus as the case may be. The Admiralty Suits Act 1868 shall apply for the purposes of proceedings in regard to any breach of the provisions of this section or for injurious affection of the said observatory or instruments or apparatus.

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25. Seven days before entering upon breaking up or interfering with any public streets or roads under the provisions of this Act within the metropolitan police district the Company shall serve notice in writing on the Commissioner of Police of the Metropolis and make such arrangements as he may reasonably require with regard to the position of the roadworks and hoardings and the continuous carrying on of the work in order to minimise the interference with the street traffic.

For protection of Commissioner of Police of Metropolis.

26. The following provisions shall unless otherwise agreed have effect for the protection of the London County Council (in this section called "the council") (that is to say):—

For protection of London County Council.

- (1) The provisions of the London Building Acts 1894 to 1909 and any Act amending the same and any bye-laws and regulations in force thereunder shall except so far as the same may be expressly varied by this Act apply to the execution of any works on any lands in the administrative county of London (hereinafter in this section called "the county") acquired under the powers of this Act and to any new buildings or additions to or alterations of existing buildings erected or made on any such lands and the Company shall save as aforesaid be entitled to the benefit of any special exemptions in favour of railway companies in the said London Building Acts contained but no such exemptions shall be deemed

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to apply to such part of any building which shall be used or intended to be used for other than railway purposes :

- (2) Except as in this Act expressly provided it shall not be lawful in the county for the Company to encroach upon any part of the surface of any street or footway or without the consent of the council to erect or maintain any building or structure beyond the general line of buildings in any street part of a street place or row of houses :
- (3) If and when the Company acquire the lands in the metropolitan borough of Stepney numbered on the deposited plans 24 25 27 28 29 30 or 241 to 246 or 261 262 263 and 264 or any part of such lands respectively they shall give notice thereof in writing to the council and if the council within six months after the receipt of such notice shall so require the Company shall add to so as to increase the present width of White Horse Street Rhodeswell Road and St. Paul's Road along the whole frontage of the lands so acquired parts of such lands to the extent shown by red colour on the plans which have been signed in duplicate by Rupert Gwynne the Chairman of the Committee of the House of Commons to which the Bill for this Act was referred (one copy of which plans has been deposited in the Parliament Office of the House of Lords and one copy in the Private Bill Office of the House of Commons) and such lands shall be thereupon deemed to form part of the highway of the streets to which the same have been added The council shall pay to the Company as compensation for the lands so added to the said streets such amount as failing agreement may be settled by arbitration in manner provided in the Lands Clauses Acts with respect to the acquisition of lands otherwise than by agreement the basis of such compensation to be the value of the said lands considered as vacant lands in possession :
- (4) The Company shall not in making maintaining working or using the Stepney and Bromley Railway (in this section called "the railway") in any manner obstruct hinder or interfere with the free uninterrupted and

safe user of the tramways of the council or any traffic on such tramways and if at any time hereafter the free uninterrupted and safe user of the said tramways or any traffic thereon is obstructed hindered or interfered with the Company shall pay to the council such damages as the council shall sustain by reason thereof: A.D. 1914.

(5) The Company shall be responsible for and make good to the council all costs losses damages and expenses which may be occasioned to the council or to the said tramways or to any person using the same or otherwise by reason of the construction maintenance user or failure of the railway or of any act or omission of the Company or of any person in their employ or of their contractors or others and the Company shall effectually indemnify and hold harmless the council from all claims and demands upon or against them by reason of such construction maintenance user or failure and of any such act or omission :

(6) (A) The Company shall not commence any works under the powers of this Act which shall or may pass over under or by the side of or so as to interfere with any sewers of the council until they have given to the council twenty-eight days' previous notice in writing of their intention to commence the same by leaving such notice at the principal office of the council with plans and sections thereof as hereinafter defined and until the council have signified their approval of the same unless the council do not signify their approval disapproval or other directions within twenty-eight days after service of the said plans and sections as aforesaid and the Company shall comply with and conform to all reasonable orders directions and regulations of the council in the execution of the said works and shall provide by new altered or substituted works in such manner as the council reasonably require for the proper protection of and for preventing injury or impediment to the said sewers by reason of the intended works or any part thereof and shall save

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—

harmless the council against all expenses to be occasioned thereby and all such works shall be done by or under the direction superintendence and control of the council at the costs charges and expenses in all respects of the Company and all reasonable costs charges and expenses which the council may be put to by reason of such works of the Company whether in the execution of works the preparation or examination of plans or designs superintendence or otherwise shall be paid to the council by the Company on demand and when any new altered or substituted works as aforesaid or any works of defence connected therewith shall be completed by or at the costs charges or expenses of the Company under the provisions of this Act the same shall thereafter be as fully and completely under the direction jurisdiction and control of the council as any sewers or works of the council now or hereafter may be ;

- (B) The plans and sections to be submitted to the council under the provisions of this subsection shall be detailed plans drawings sections and descriptions describing the exact position and manner in which and the levels at which the works are proposed to be constructed and shall accurately describe the position of all sewers of the council within the limits of deviation shown on the deposited plans (for which purpose the council shall allow the Company access to plans in their possession and to any of their sewers in order to enable the Company to obtain trustworthy information) and shall comprise detailed drawings of any alteration which the Company may propose to make in the said sewers ;
- (c) The council may require such modification to be made in the said plans drawings sections and descriptions as may be reasonably necessary to secure the sewers and drainage system of London under the jurisdiction and control of the council against interference or risk of damage and to provide and secure a proper and convenient means of access to the said sewers ;

- (D) The Company shall be liable to make good all injury or damage caused by or resulting from any of their works or operations under the powers of this Act to any sewers drains or works vested in the council and the council shall from time to time have power to recover the amount thereof from the Company in any court of competent jurisdiction ;
- (E) The approval by the council of any plans or superintendence by the council of any work under the provisions of this subsection shall not exonerate the Company from any liability or affect any claim for damages under this subsection or otherwise :
- (7) The Company shall not divert any street in the county except in accordance with plans submitted to and approved by the council :
- (8) The Company shall not where any house or building in the county has been wholly or in part demolished by them leave any adjoining structure or any portion of a partly demolished structure in an unsightly condition for a longer period than is reasonably necessary :
- (9) The Company shall not affix or exhibit or permit to be affixed or exhibited upon any part of the lands acquired under this Act or upon any building or hoarding and whether during or after the construction of the railway within view of any public street in the county any placards or advertisements except such as have been approved in writing by the council and if any such placard or advertisement is affixed or exhibited without such approval the council and their authorised officers may remove the same but this provision shall not prevent the Company from exhibiting on the outside of any station placards giving information to the public as to the business of the Company :
- (10) The Company shall in constructing the railway over the streets next herein-after mentioned construct and afterwards maintain the bridges and works to carry such railway as girder bridges which shall have a clear headway throughout above the existing surface

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of the street and a clear span throughout measured on the square of not less than the headways and spans herein-after mentioned (that is to say):—

Metropolitan Borough.	Situation of Bridge.	Headway.		Span at Right Angles to Street.	
		ft.	ins.	ft.	ins.
Stepney	Ratcliff Square - - -	13	9	40	0
	Boulcott Street - - -	15	0	30	0
	White Horse Street - - -	17	0	60	0
	Commercial Road East - - -	18	0	80	0
	Barnes Street - - -	17	0	40	0
	Chaseley Street - - -	17	0	30	0
	Raby Street - - -	17	0	30	0
	Salmon Lane - - -	17	0	40	0
	Samuel Street - - -	17	0	30	0
	Brenton Street - - -	17	0	30	0
	Blount Street - - -	17	0	30	0
	Carr Street - - -	17	0	30	0
	Repton Street - - -				
	Burdett Road - - -	17	0	80	0
Poplar	Cantrell Road - - -	17	0	30	0
	Campbell Road - - -	16	0	40	0
	Burdett Street - - -	12	6	40	0

The Company may in constructing the railway over the streets next herein-after mentioned construct and afterwards maintain the bridges and works to carry such railway as arch bridges which shall have headways above the existing surface of the street and spans throughout measured on the square of not less than the headways and spans next herein-after mentioned (that is to say):—

Metropolitan Borough.	Situation of Bridge.	Headway at Centre.		Headway 12 ft. from Centre.		Span at Right Angles to Street.	
		ft.	ins.	ft.	ins.	ft.	ins.
Stepney	Flamborough Street -	18	0	15	6	40	0
	Rhodeswell Road -	21	0	18	0	40	0
	St. Paul's Road -	21	0	18	0	40	0
	Baythorne Street -	21	0	18	0	40	0
	Huddart Street -	21	0	18	0	40	0
	Robeson Street -	21	0	18	0	40	0
	Bow Common Lane -	21	0	18	0	40	0
Poplar	Rounton Road -	19	0	16	5	40	0

(11) The said bridges and works shall be of a reasonably ornamental character and design and shall so far as

reasonably practicable be made and maintained so as to prevent the dripping of water therefrom on any part of any street area or forecourt and so as to deaden the sound of engines carriages and traffic passing over them and the parapets of such bridges and works shall be carried up to a height not less than six feet above rail level to hide from view of the street trains passing over such bridges or works In constructing the bridges aforesaid the Company shall face the abutments of the said bridges above the level of three feet above the surface of the adjoining footway with white glazed bricks or tiles and shall at all times keep the surface of such bricks or tiles clean and in good repair to the satisfaction of the local authority :

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- (12) The Company shall not execute or commence to execute such construction until they have given to the council twenty-eight days' previous notice in writing of their intention to commence the same by leaving such notice at the offices of the council with plans elevations sections and all other necessary particulars of the works and until the council have signified their approval of the same unless the council fail to signify such approval or their disapproval or other directions within twenty-eight days after service of the said notice and delivery of the said plans elevations sections and other particulars and the Company shall comply with and conform to all reasonable directions and regulations of the council in the execution and subsequent maintenance of every such bridge and works and shall save harmless the council against all and every expense to be occasioned thereby and all such works shall be done to the reasonable satisfaction of the council at the costs charges and expenses in all respects of the Company and all costs charges and expenses which the council may be put to by reason of the works of the Company whether in the execution of the works the preparation or examination of plans and designs superintendence or otherwise shall be paid to the council by the Company on demand :

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(13) The width of the bridges to be constructed by the Company over Commercial Road East Burdett Road and White Horse Street shall not exceed thirty-five feet over all measured at right angles to the centre line of the railway. Provided that if the Company construct a station upon the bridge over Burdett Road the width of such bridge measured as aforesaid may exceed thirty-five feet but shall not exceed fifty-five feet :

(14) The Company shall if reasonably necessary at their own expense provide and maintain adequate artificial lighting in the street under any bridge constructed under this Act and in the street under any existing bridge if such lighting is rendered reasonably necessary in consequence of the works authorised by this Act to the satisfaction of the council of the metropolitan borough in which any such street is situate :

(15) Notwithstanding anything contained in this Act or shown on the deposited plans the Company shall not construct any bridge or other work over or otherwise interfere with Caroline Street and Pitsea Place in the metropolitan borough of Stepney :

(16) Any difference which may arise between the Company and the council under this section (except under subsections (1) (2) (3) (6) (7) (8) (9) (13) and (15) thereof) shall be determined by an arbitrator to be agreed upon between the Company and the council or failing agreement to be appointed by the President of the Institution of Civil Engineers on the application of either party and the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

For protec-
tion of St.
Paul's
School
Stepney.

27. The following provisions shall apply and have effect for the protection of the Reverend Walter Forster minister and Sidney Robert Mead and Alfred Turner churchwardens of the Church of St. Paul's Stepney and their successors trustees of St. Paul's Church School Burdett Road in the metropolitan borough of Stepney (in this section called "the trustees") :—

(1) Notwithstanding anything contained in this Act or shown on the deposited plans the Company shall only acquire so much of the lands in the metropolitan borough

of Stepney numbered 285 on the deposited plans as is shown by red colour on the plan (in this section called "the signed plan") which has been signed in duplicate by Rupert Gwynne the Chairman of the Committee of the House of Commons to which the Bill for this Act was referred one copy of which plan has been deposited in the Private Bill Office of the House of Commons and one copy in the Parliament Office of the House of Lords: A.D. 1914.

(2) The Company shall not enter upon take or use any part of the said lands until—

(A) they have paid to the National Society for the Promotion of the Education of the Poor in the Principles of the Established Church in England and Wales for and on behalf of the trustees the sum of nine thousand five hundred pounds; and

(B) they have at their own expense acquired and conveyed to the trustees the fee simple in possession of and in the lands coloured blue on the signed plan (in this section called "the added lands") and demolished any buildings thereon and the added lands shall be held by the trustees in the same manner and upon the same trusts in all respects as the lands and premises of St. Paul's Church School are held:

(3) The Company shall if necessary apply to Parliament in the session of 1915 or 1916 for powers to acquire the added lands and the trustees shall as far as possible assist the Company in such application:

(4) As soon as possible after the Company have complied with the provisions of subsection (2) of this section the trustees shall convey to the Company the lands shown by red colour on the signed plan and the Company shall erect thereon along the north-western boundary of the said lands a boundary wall to the satisfaction of the trustees. The trustees shall make such alterations and additions to the buildings and premises of St. Paul's Church School as may be necessary to comply with the requirements of the Board of Education and the local education authority and the balance (if any) of the said sum of nine

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thousand five hundred pounds after the discharge of all costs and expenses incurred by the trustees shall be held by the trustees upon the same trusts in all respects as the lands and premises of St. Paul's Church School are held :

(5) The Company shall not construct any works on the lands shown by red colour on the signed plan to the north-westward of the dotted line AB shown thereon other than the said boundary wall and an accommodation roadway and if the Company construct such roadway they shall only use the same for providing access to the arches of the viaduct carrying the Stepney and Bromley Railway over the said lands Provided that if the Board of Education at any time object to the use to which the roadway is put the Company shall discontinue or cause to be discontinued such use or take such other steps in connexion therewith as the Board of Education may require :

(6) If any difference arises under this section between the Company and the trustees the same shall be referred to and determined by a surveyor to be appointed in default of agreement by the President of the Surveyors' Institution and the provisions of the Arbitration Act 1889 shall apply to any such reference.

For protection of
Stepney
Borough
Council.

28. For the protection of the mayor aldermen and councillors (in this section called "the council") of the metropolitan borough of Stepney (in this section called "the borough") the following provisions shall notwithstanding anything contained in this Act or in the Acts incorporated therewith unless otherwise agreed in writing apply and have effect (that is to say) :—

(1) Twenty days before commencing to break up any highway or to interfere with or alter under the powers of this Act any mains pipes wires sewers drains or other similar works (in this section called "apparatus") of the council the Company shall submit to the council for their reasonable approval plans and sections showing the manner in which they propose to interfere with or alter any such apparatus and the Company shall comply with all reasonable requirements of the council with regard to such interference or alteration

Such plans and sections shall be deemed to be approved if objection thereto in writing is not delivered by the council to the Company within fourteen days after the delivery of the same to the council. The Company shall not commence any of the said works until they shall have given to the engineer of the council three clear days' notice in writing of their intention so to do and such notice shall not be given until either the said period of fourteen days has expired or the approval of the council to the said plans and sections has been given or any difference with reference to the same has been settled by arbitration as herein-after provided as the case may be: A.D. 1914.

- (2) If it should appear to the council that any work or operations under the powers of this Act will endanger any apparatus of the council or the use thereof the council may give notice to the Company to lower or otherwise alter the position of such apparatus or to support the same or to substitute temporarily or otherwise other apparatus in such manner as may be reasonably necessary and any difference as to the necessity of such lowering alteration support substitution (in this section called "protective works") shall be settled by arbitration as by this section is herein-after provided. All protective works so agreed or settled shall save as herein-after provided be done and executed by and at the expense of the Company to the reasonable satisfaction and under the supervision (if the same be given) of the engineer of the council. If the council by notice in writing to the Company within seven days after the receipt by them of notice of the intended commencement by the Company of any such work of the Company so require the council may themselves execute such protective works and the Company shall on the completion thereof pay to the council the reasonable expenses incurred by them in the execution thereof:
- (3) The council may if they deem fit employ watchmen or inspectors to watch and inspect any work whereby any apparatus of the council will be interfered with or affected during construction repair or renewal thereof

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and the reasonable expense of employment of such watchmen or inspectors shall be borne by the Company and be paid by them to the council:

- (4) If any interruption in the supply of electrical energy shall without the written authority of the council be in any way occasioned either by reason of the exercise of the statutory powers conferred upon the Company or by the act or default of the Company or of any of their contractors agents workmen or servants or any persons in the employ of them or any or either of them the Company shall forfeit and pay to the council all loss costs damages and expenses which the council may sustain or incur by reason of such interruption:
- (5) The Company shall not raise sink or otherwise alter the position of any sewers drains or electric lines of the council so as to diminish or increase the covering thereover except with the consent of the engineer of the council:
- (6) The expense of all repairs or renewals of any apparatus of the council or any works in connexion therewith which may at any time hereafter be rendered necessary either by reason of the exercise of the powers for the construction of the Stepney and Bromley Railway or the breaking up of streets conferred upon the Company by this Act or by the act or default in such construction or breaking up of the Company or their contractors or agents or any person in the employ of any of them or rendered necessary by reason of any subsidence resulting from works by this Act authorised whether during the construction of the said railway or thereafter shall be borne and paid by the Company:
- (7) It shall be lawful for the council and the engineers workmen and others in their employ at all times when it may be reasonably necessary at their own cost and risk as to accidents to enter upon the works by this Act authorised during their construction or at any time when such works are undergoing repair or renewal at any point or place where there is existing apparatus of the council and to do all such acts as may be reasonably necessary for repairing maintaining

or removing or replacing such apparatus under or over such works and notwithstanding the stopping up temporarily of any public street or place under the powers of this Act to exercise the same right of access as they now enjoy to all or any apparatus of the council situate in or under any such street or place. Provided always that in so doing the council their engineers or workmen or others in the employ of the council shall not interrupt the works or operations of the Company and provided also that the council shall make good and reimburse to the Company all damages to such works occasioned by the exercise of the powers by this section reserved to the council :

- (8) Notwithstanding the diversion under the section of this Act whereof the marginal note is "Power to divert roads and footpaths" of Cantrell Road (Bow Common Lane) into the borough the said road including such part or parts thereof as may after diversion be situate within the borough shall at all times continue to be maintained by and at the expense of the mayor aldermen and councillors of the metropolitan borough of Poplar as if the same were situate in their borough :
- (9) Any paving metalling posts drains pipes wires or other materials which at the passing of this Act shall be vested in or shall belong to the council in any street or portion of street stopped up by the Company under the powers of this Act shall notwithstanding any such stopping up remain the property of the council and if so required by the council be delivered by and at the expense of the Company to the council at such place or places to be reasonably appointed by the engineer of the council not being further distant than two miles from the place where such paving metalling posts drains pipes wires or other materials may at the time of the making of such requirement by the Council be lying :
- (10) The Company shall make good from time to time any subsidence in any highway street road or footway caused by the works of the Company which may occur within one year from the date when the highway street road or footway was restored by the

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Company and if they fail so to do the council may repair and make good any such subsidence and the reasonable cost thereof shall be repaid by the Company to the council on demand :

(11) So far as relates to all lands acquired by the Company under the powers of this Act in the borough for the purposes of their undertaking section 133 of the Lands Clauses Consolidation Act 1845 shall be read as if the words "general rate as defined by the London Government Act 1899 or other local rate" were substituted therein for the words "poor's rate" :

(12) If any difference shall arise between the council and the Company touching this section or anything to be done or not to be done thereunder the same shall be determined by an arbitrator to be appointed on the application of either the Company or the council by the President of the Institution of Civil Engineers and the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

For protection of
Poplar
Borough
Council.

29. For the protection of the mayor aldermen and councillors of the metropolitan borough of Poplar (herein-after in this section respectively referred to as "the council" and "the borough") the following provisions shall unless otherwise agreed between the Company and the council apply and have effect (that is to say):—

(1) In constructing so much of the Stepney and Bromley Railway as is situate in the borough the Company shall not construct any works which will or may interfere with any road street or footpath belonging to the council or any sewer drain pipe main cable apparatus or work belonging to the council (all of which are herein-after included in the expression "any work belonging to the council") until they have submitted to the council's surveyor plans sections and descriptions showing the nature of such works and such plans and sections shall have been approved by the said surveyor or in case of difference between him and the Company by an arbitrator to be appointed as herein-after provided Provided always that if such surveyor does not within fourteen days after any such plans and sections shall have been submitted to him signify in writing his approval or

disapproval thereof or other his directions in relation thereto he shall be deemed to have approved the same : A.D. 1914.

- (2) The Company shall on demand pay to the council the reasonable charges incurred by them in connexion with the employment by them of any clerk of the works to superintend under the direction of their surveyor any such works as aforesaid :
- (3) If the Company shall proceed with the proposed diversion of Cantrell Road they shall before commencing any works in or along or adjacent to the portion of Cantrell Road to be diverted into the borough of Stepney construct to the reasonable satisfaction of the surveyor of the council under the road to be substituted therefor and under Bow Common Lane and in accordance with plans sections and specifications to be previously approved by such surveyor a new sewer of equal capacity to the capacity of the existing sewer under the said portion of Cantrell Road and having all such gradients manholes inspection chambers and conveniences as the council may reasonably require for conveying the sewage which now flows through the said existing sewer into the sewer in Bow Common Lane and such new sewer when constructed shall be connected with the existing sewers of the council in the unaltered portion of Cantrell Road and Bow Common Lane by the council at the expense of the Company and thereafter such new sewer manholes inspection chambers and conveniences shall be under the direction jurisdiction and control of the borough council in whose district the same are situate :
- (4) Whenever in constructing any works by this Act authorised it becomes necessary or desirable in order to insure ready access or otherwise to divert intercept or interfere with any work belonging to the council (other than the existing sewer mentioned in subsection (3) hereof) the Company shall before diverting intercepting or interfering therewith construct in lieu thereof to the reasonable satisfaction of the surveyor of the council another work of equal capacity with the work belonging to the council proposed to be diverted interfered with or intercepted together with

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all such manholes inspection chambers and conveniences as the council may reasonably require and such substituted work shall be connected by the council at the expense of the Company with the existing like work belonging to the council at such point and in such manner as they shall reasonably consider necessary and shall thereafter be as fully and completely under the direction jurisdiction and control of or the property of the council as the work for which the same is substituted may be:

- (5) Where the Company under the powers of this Act stop up any street or portion of street in the borough (other than the portion of Cantrell Road mentioned in subsection (3) hereof) and substitute a new street therefor they shall in accordance with such plans as may be approved by the council's surveyor and under the superintendence of such surveyor or any clerk of works appointed by the council and acting under the direction of such surveyor divert under the substituted street any work belonging to the council constructed or laid under such discontinued street or portion of street or shall otherwise to the reasonable satisfaction of such surveyor provide additional works under such substituted street:
- (6) Before executing any works which will or may obstruct any street in the borough the Company shall to the reasonable satisfaction of the council provide and thereafter so long as the same may be necessary to the like satisfaction maintain sufficient accommodation for the traffic along such street and access to all houses and property approached thereby and during the progress and until the completion of such works the Company shall make and carry into effect such arrangements for fencing lighting and watching the portions of the street interfered with and the works in course of execution therein or adjacent thereto as may be reasonably necessary to prevent danger or accident to persons and vehicles using the said street:
- (7) The provisions of subsection (11) of the section of this Act of which the marginal note is "For protection of London County Council" so far as the same relate to works to be constructed in the borough

shall not be varied by agreement between the Company and the London County Council without the consent in writing of the council: A.D. 1914.

- (8) The Company shall if reasonably necessary at their own expense provide and maintain adequate artificial lighting in the street under any bridge constructed reconstructed or altered under this Act and in the street under any existing bridge if such lighting is rendered reasonably necessary in consequence of the works authorised by this Act to the satisfaction of the council:
- (9) The Company shall to the reasonable satisfaction of the council's surveyor demolish any sewer which may be rendered unnecessary and the drains from any house which may be demolished by or in consequence of the execution of any of the works in the borough by this Act authorised:
- (10) The Company shall whenever they remove any granite setts paving stones flags kerbing channelling metalling or other materials from the carriageways or footpaths of any street in the borough which shall not be required for the reconstruction or diversion of the same deliver the said materials at their own cost to the council at such of their depôts in the borough as their surveyor may direct:
- (11) The springing level of the arch carrying the railway over Rounton Road shall not be less than seven feet six inches above the level of the footpaths:
- (12) So far as relates to all lands acquired by the Company in the borough under the powers of this Act section 133 of the Lands Clauses Consolidation Act 1845 shall be read as if the words "general rate as defined by the London Government Act 1899 or " other local rate" were included therein in addition to the words "land tax and poor's rate":
- (13) In case of any difference or dispute arising between the council and the Company touching or concerning the true intent of the provisions in this section contained or anything to be done or not to be done hereunder such difference shall be determined by an arbitrator to be appointed unless otherwise agreed by

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the President of the Institution of Civil Engineers on the application of either party and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

For protection of London and Blackwall and Great Eastern Railway Companies.

30. Whereas the London and Blackwall Railway (in this section referred to as "the Blackwall Railway") and the arches lands and works connected therewith are leased by the London and Blackwall Railway Company (in this section called "the Blackwall Company") to the Great Eastern Railway Company (in this section called "the Great Eastern Company") for a term of nine hundred and ninety-nine years under the provisions of the London and Blackwall Railway Lease Act 1865 And whereas the Blackwall Railway and the said arches lands and works will be interfered with by the construction of the Stepney and Bromley Railway and the works connected therewith by this Act authorised Therefore the following provisions for the protection of the Blackwall Company and the Great Eastern Company shall notwithstanding anything shown on the deposited plans and sections or contained in this Act and unless otherwise agreed in writing between the Company and the Great Eastern Company be observed and have effect (that is to say):—

- (1) No part of the Stepney and Bromley Railway nor of any of the works in connexion therewith other than foundations below the surface of the ground where the same will pass alongside the Blackwall Railway between Commercial Road East and Bow Common Lane shall without the consent in writing of the Great Eastern Company under their common seal be constructed within a distance of fourteen feet six inches from any part of the viaduct of the Blackwall Railway:
- (2) The Company shall not without the previous consent of the Blackwall Company and the Great Eastern Company under their respective common seals purchase take enter upon or interfere with either permanently or temporarily any portion of the Blackwall Railway but the Company may purchase and take and the Blackwall Company and the Great Eastern Company respectively shall sell and grant accordingly an easement or right of using so much of the Blackwall Railway as may be necessary for the construction thereover of the Stepney and Bromley Railway and

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the junction thereof with the Blackwall Railway and the works in connexion therewith in accordance with the provisions of this section. The Company shall pay to the Blackwall Company and the Great Eastern Company respectively for such easement such sums either annual or otherwise as may be agreed upon or failing agreement as shall be settled in manner provided by the Lands Clauses Acts with respect to the purchase and taking of lands otherwise than by agreement and for that purpose the easement so to be taken shall be deemed to be lands and in no case shall such easement without the consent of the Blackwall Company and the Great Eastern Company extend to a greater area than is absolutely necessary for the proper construction of the Stepney and Bromley Railway and the said works connected therewith in accordance with the provisions of this section :

- (3) The Company shall not without the previous consent of the Great Eastern Company under their common seal purchase take enter upon or interfere with either permanently or temporarily any of the lands or property of the Blackwall Company and the Great Eastern Company or either of them except only so far as shall be necessary for the construction of the Stepney and Bromley Railway and the works in connexion therewith but the Company shall if required by the Great Eastern Company so to do purchase and take under the provisions of the Lands Clauses Acts with respect to the purchase and taking of lands otherwise than by agreement any of the lands of those companies which are situate on the north side of the Blackwall Railway beyond the distance of fourteen feet six inches from the viaduct of the Blackwall Railway referred to in subsection (1) of this section :
- (4) The junction of the Stepney and Bromley Railway with the Blackwall Railway shall be effected at such point within the limits of deviation and in such manner and according to such mode of construction as shall be reasonably approved by the principal engineer of the Great Eastern Company (in this section called "the principal engineer") before the commencement

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of the work and the said junction shall if the Great Eastern Company so elect be constructed by them at the expense of the Company. The Great Eastern Company may at any time or times hereafter if deemed necessary by them for the widening alteration or improvement of the Blackwall Railway or works alter or remove the said junction and substitute therefor a new junction and works equally convenient or as nearly as may be at the cost and expense in all respects of the Company. The said junction of the Stepney and Bromley Railway with the Blackwall Railway and any altered or substituted junction and other works herein-before provided for shall be maintained by the Great Eastern Company at the expense of the Company :

- (5) The Stepney and Bromley Railway shall be carried over the Blackwall Railway and over the private roadway numbered on the deposited plans 3 in the metropolitan borough of Poplar by means of a girder bridge of one clear span of not less width than fifty-three feet six inches measured on the square with a clear headway of fifteen feet throughout above the rail level of the existing lines of railway upon the Blackwall Railway so as to admit of the laying down of an additional line of rails on the north side of the said existing lines of railway and so as to leave a clear space of not less than five feet two inches in width on the south side of the said existing lines of railway. The Company shall so construct the northern abutment for carrying the said bridge as to allow for the girders forming the sub-structure for any such additional line of rails as aforesaid to rest upon and be housed into the said abutment and the Company shall at any time when called upon to do so by the Great Eastern Company afford to that company all reasonable facilities of every kind for laying down the said line of rails :
- (6) Subject as aforesaid the Company shall construct the portions of the Stepney and Bromley Railway where the same passes over or affects the Blackwall Railway and the bridge and works necessary and incidental thereto in accordance with the provisions of this

section and according to such plans sections and specifications and in such manner in every other respect as shall be previously submitted to and approved in writing by the principal engineer and the Company shall not commence the construction of the said portions of railway and bridge or any of the said works or enter upon or interfere with the Blackwall Railway until such plans sections and specifications and matters have been so submitted and approved. Provided always that if the principal engineer shall for the period of one month neglect or refuse to approve such plans sections and specifications or other matters or shall disapprove the same and the principal engineer and the engineer of the Company do not otherwise agree then the said portions of railway and bridge and the works connected therewith shall be constructed according to plans sections and specifications to be submitted to and approved (subject nevertheless to the special provisions of this section) by and in all respects in accordance with the directions of an engineer to be agreed upon between the said engineers in writing or in default of agreement to be appointed as herein-after provided:

- (7) The Stepney and Bromley Railway and other works by this Act authorised where they are carried over or in anywise affect the Blackwall Railway or any works for the maintenance repair or renewal thereof shall after the commencement thereof be proceeded with with all practicable despatch:
- (8) The Company shall bear and on demand pay to the Great Eastern Company the expense of the employment by that company during the execution of any work affecting any railway railway siding or other work of that company of a sufficient number of inspectors watchmen and signalmen to be appointed by that company for watching and signalling the same with reference to and during the execution of any such work of the Company and for preventing as far as may be all interference obstruction danger and accident from any of the operations or from the acts or defaults of the Company or their contractors or any person in the employ of the Company or of their contractors with reference thereto or otherwise:

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- (9) The Company shall at all times maintain the bridge and other works by which the Stepney and Bromley Railway shall be carried over the Blackwall Railway in substantial repair and good order and condition and of the span and headway in this section prescribed to the reasonable satisfaction in all respects of the principal engineer and if and whenever the Company fail so to do after one month's notice from the Great Eastern Company for that purpose or in case of urgency without notice the Great Eastern Company may make and do in and upon as well the lands of the Company as the lands held by them all such repairs and works as the Great Eastern Company may reasonably think requisite and the sum from time to time certified by the principal engineer to be the reasonable amount of the expenditure of the Great Eastern Company in that respect shall be repaid to them on demand by the Company:
- (10) The Company shall construct the Stepney and Bromley Railway and the works in connexion therewith so far as they may affect or interfere with the Blackwall Railway so as to leave undisturbed at all times the Blackwall Railway and so as not in any way to obstruct or impede or interfere with the free and uninterrupted and safe user of the Blackwall Railway or with the traffic thereon and if any interruption shall be occasioned to the traffic of or upon the Blackwall Railway by reason of the construction of the said railway and works the Company shall pay to the Great Eastern Company all costs and expenses to which that company may be put as well as full compensation for all loss sustained by that company by reason of any such interruption or interference:
- (11) All works including works of maintenance and repair which in the opinion of the principal engineer shall affect the railway and works of the Blackwall Company shall be carried out and executed under the superintendence (if the same be given) and to the reasonable satisfaction of the principal engineer and in all things at the expense of the Company:
- (12) The approval by the principal engineer of any plans or the superintendence by him of any works under the

provisions of this section shall not exonerate the Company from liability for damage caused to the Blackwall Railway nor affect any claim by the Great Eastern Company for injury caused to or any interruption to or interference with the traffic on the Blackwall Railway or the claims or demands of any other company person or persons using the same :

- (13) The Company shall be responsible for and make good to the Great Eastern Company all costs losses damages and expenses which may be occasioned to the Great Eastern Company or to any of the railways works or property belonging to or held by them or to the traffic thereon or otherwise by reason of the execution or failure of any of the works by this Act authorised or of any act or omission of the Company or of any person in the employ of the Company or of their contractors or agents and the Company shall effectually indemnify and hold harmless the Great Eastern Company from all claims and demands upon or against them by reason of such execution or failure and of any such act or omission :
- (14) The Company shall repay to the Great Eastern Company or the managing committee of the Great Eastern Railway Accident Fund as the case may require all sums of money costs charges and expenses which the Great Eastern Company or the said managing committee may have to pay to any servants or workmen of the Great Eastern Company in respect of personal injury by accident happening to such servants or workmen while engaged upon any work which the Great Eastern Company are by this section empowered to execute :
- (15) If by or in consequence of the construction of the Stepney and Bromley Railway and any works in connexion therewith or of any junction or altered or substituted junction it shall become necessary to add to alter or change the position of any signals signal posts signal boxes or cabins or other works upon the Blackwall Railway the same shall be so added to altered or changed by the Great Eastern Company and the reasonable expense thereof shall be repaid to

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them by the Company forthwith on demand and the reasonable cost of the maintenance of all additional or the additional cost of all altered signals signal posts signal boxes or cabins or other works that may have become necessary by or in consequence of the works of the Company shall forthwith on demand be repaid to the Great Eastern Company by the Company :

- (16) The Company and the Great Eastern Company or the Company and the Blackwall Company (with the consent of the Great Eastern Company) may enter into and carry into effect any agreement for the execution by the Great Eastern Company of the works by this Act authorised so far as they will affect the railways and lands of the Blackwall Company or the Great Eastern Company or either of such companies :
- (17) The Company shall at all times during the construction and after the completion of the Stepney and Bromley Railway afford to the principal engineer and his assistants and workmen and all other persons authorised by the Great Eastern Company access to the arches under the Blackwall Railway for the purpose of inspecting the state and condition thereof and for effecting any such repairs to any of the said arches or the Blackwall Railway as the principal engineer may from time to time think fit :
- (18) The Company shall make good to the Great Eastern Company any net loss of rents from arches on land of the Blackwall Company arising during the construction of the Stepney and Bromley Railway or of the works to be carried out in pursuance of this section by reason of any interference with such arches by such railway or works and the Company shall pay to the Great Eastern Company full compensation for any damage that may be done to the letting value of such arches after the completion of the said railway and works :
- (19) The provisions in this section contained shall not be in derogation of any rights remedies or compensation to which the Blackwall Company or the Great

Eastern Company is or may be entitled under the provisions of this Act or any Acts incorporated herewith: A.D. 1914.

(20) The provisions of this section for the protection of the Great Eastern Company shall apply and have effect mutatis mutandis for the protection of the Blackwall Company upon the expiration or sooner determination of the lease of the Blackwall Railway to the Great Eastern Company:

(21) Except as in this section otherwise expressly provided any difference which shall arise between the Company and the Great Eastern Company with respect to any questions which are under this section to be determined by arbitration shall be referred to and settled by an arbitrator to be agreed upon or failing such agreement to be appointed on the application of either party by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such settlement by arbitration.

31. The following provisions for the protection of the North London Railway Company (in this section called "the North London Company") shall unless otherwise agreed between the Company and the North London Company apply and have effect:— For protection of North London Railway Company.

(1) The Company shall construct the Stepney and Bromley Railway and the works connected therewith by this Act authorised so far as the same pass over adjoin or affect the railways lands or works of the North London Company to the reasonable satisfaction of Ernest Crosbie Trench or other the principal engineer of the North London Company (in this section called "the said principal engineer") and so as to leave undisturbed at all times the lines of railway and other works connected therewith of the North London Company and so as in no way to obstruct impede or interfere with the free and uninterrupted and safe use of the railway of the North London Company or with the traffic thereon and if any such obstruction or interference shall be caused or take place the Company shall pay to the North London Company full compensation in respect thereof:

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- (2) The Company shall carry the said railway where the same is intended to cross over the railway of the North London Company by means of girder bridges. In the case of the crossing of the railway and property of the North London Company near Cantrell Road the bridge shall be constructed for three lines of railway and its south-eastern abutment shall be built so that there shall not be a less distance between the face of the abutment and the nearest existing rail of the North London Company's railway than eighteen feet at its south-western end and sixteen feet at its north-eastern end and in the case of the crossing by the said railway of the railway and property of the North London Company situate between Campbell Road and Burdett Street of a span not less than the existing bridge carrying the Company's line over the North London Railway adjoining the point of crossing and to be in such positions as shall be approved by the principal engineer of the North London Company and such bridges shall have a clear headway throughout of not less than fifteen feet above the existing level of the upper surface of the rails upon the said railway of the North London Company at the said points of crossing and the Company shall for ever maintain such headway:
- (3) The Company shall not in any way interfere with the bridge carrying the North London Railway over the said Cantrell Road:
- (4) Any alterations to the existing buildings of the North London Company situate near Burdett Street and numbered on the deposited plans 184 in the metropolitan borough of Poplar rendered necessary by the construction of the said railway shall be carried out only according to plans to be reasonably approved by the said principal engineer:
- (5) If by reason of the construction of the said railway hereby authorised it shall become necessary to add to or alter the signal or signals upon the said railway of the North London Company the same shall be so added to or altered by the North London Company and the reasonable expense thereof shall be repaid to that company by the Company:

(6) The Company shall before commencing the construction or the structural alteration renewal or repair of the said railway give (except in case of emergency) twenty-eight days' previous notice in writing to the said principal engineer of their intention to commence such works and in case of emergency the Company shall give to the North London Company the longest notice which they can reasonably give having regard to the urgency of the repairs to be executed and such notice shall be accompanied by a sufficient description of the works proposed to be carried out: A.D. 1914.

(7) The Company shall construct the said portions of railway where the same will pass over the railways of the North London Company and all the works both temporary and permanent necessary and incident to the construction thereof so far as they affect the property and works of the North London Company in accordance with the provisions of this section and according to plans sections and specifications previously submitted to and reasonably approved in writing by the said principal engineer and the Company shall not commence the construction of the said portions of railway or enter upon or interfere with any land works or property belonging to or used by the North London Company until such plans sections and specifications have been so submitted and approved. Provided always that if the said principal engineer shall for the period of one month neglect or refuse to approve such plans sections or specifications or shall disapprove the same and in case of the said principal engineer and the engineer of the Company failing to agree or of any difference arising between them then the said portions of railway and the said works shall be constructed according to plans sections and specifications to be submitted to and approved (subject however to the special provisions of this section) by an engineer to be appointed as herein-after provided:

(8) Notwithstanding the approval of plans sections and detailed drawings and specifications or supervision by or completion to the satisfaction of the said principal engineer and notwithstanding the compliance

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by the Company with the provisions of this section if during the execution of any of the works hereinbefore referred to the said railway of the North London Company or any of the works connected therewith respectively or any lands or property of that company shall be injured or damaged such injury or damage shall be forthwith made good by the North London Company who may recover the full amount expended in so doing from the Company:

- (9) The said portions of railway and all works necessary or incident to the construction thereof or affecting the property or works of the North London Company shall be executed by and in all things at the expense of the Company and under the superintendence if the same be given and to the reasonable satisfaction of the said principal engineer:
- (10) The Company shall not except with the previous consent of the North London Company under their common seal purchase or acquire any lands or property of that company but the Company may purchase and take and the North London Company shall sell and grant accordingly an easement or right of using so much of the lands of the North London Company as may be necessary for the construction of the said portions of railway in accordance with the provisions of this section:
- (11) During the construction of the said portions of railway across and adjoining and near to or affecting the railways property and works of the North London Company the Company shall bear and on demand pay to them the reasonable expense of employment by them of a sufficient number of inspectors or watchmen to be appointed by the North London Company for watching their railways and the works thereof with reference thereto and during the execution of the intended works and for preventing as far as may be all interference obstruction danger and accident which may arise from any of the operations or from the acts or defaults of the Company or their contractors or any person or persons in the employment of the Company or their contractors with reference thereto or otherwise:

- (12) The Company shall at all times maintain the said portions of railway and all works connected therewith and incident thereto by which the said railway shall be carried over under and adjoining the railways or any widening thereof of the North London Company or the works and lands of that company in substantial repair and good order to the reasonable satisfaction in all respects of the said principal engineer and if and whenever the Company fail so to do the North London Company may make and do in and upon as well the lands of the Company as their own lands all such works repairs and things as they may reasonably think requisite in that behalf and the reasonable amount of such expenditure to be settled in case of difference by an arbitrator to be appointed as herein-after provided shall be repaid to the North London Company by the Company and in default may be recovered by them from the Company with full costs in any court of competent jurisdiction :
- (13) Notwithstanding anything in this Act contained the Company shall be responsible for and make good to the North London Company all costs losses damages or expenses which may be occasioned to them or to any of their railways works or property or to the traffic thereon or otherwise by reason of the execution or failure of the Company's railway and the works in connexion therewith or of any act or omission of the Company or of any of the persons in their employ or of their contractors or others and the Company shall effectually indemnify and hold harmless the North London Company from all claims and demands upon or against them by reason of such execution or failure and of such act or omission :
- (14) In the event of the telegraphic telephonic or electrical signal communications or apparatus of the North London Company being injuriously affected by induction or otherwise by the working of the said railways or by the electric or other works of the Company the Company shall with all possible despatch at their own expense execute or do such remedial works in connexion with their own plant as the North London

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Company may reasonably consider to be necessary for their protection and the North London Company shall be empowered to carry out such alteration in their telegraphic telephonic or electrical signal communications or apparatus on their railways as they may deem to be reasonably necessary at the cost of the Company :

- (15) The Company and the North London Company may agree for any variation or alteration upon and within the lands belonging to them respectively in the works in this section provided for or in the manner in which the same shall be executed :
- (16) If any difference arises between the Company and the North London Company touching this section such difference shall be determined by an engineer to be appointed failing agreement by the President of the Institution of Civil Engineers upon the application of either party and subject thereto in accordance with the provisions of the Arbitration Act 1889.

For protection of Metropolitan Water Board.

32. For the protection of the Metropolitan Water Board (in this section referred to as "the board") the following provisions shall unless otherwise agreed in writing between the board and the Company have effect (that is to say):—

- (1) Subject to the provisions of this section the provisions of sections 18 to 23 of the Railways Clauses Consolidation Act 1845 shall for the purposes of this Act extend and apply (so far as the same are not inconsistent with the provisions of this section) to the mains pipes and apparatus of the board (in this section referred to as "apparatus") and shall be construed as if the board were mentioned in those sections in addition to "company or society" Provided that any penalties recovered under section 23 shall be appropriated to the water fund of the board established by the Metropolis Water Act 1902 :
- (2) The Company shall construct the bridges for carrying the Stepney and Bromley Railway over any roads or streets in which any apparatus of the board are situate so that the foundations for the piers and abutments thereof shall be carried to a depth of five feet below

the surface of Commercial Road East White Horse Street and Burdett Road and to a depth of four feet below the surface of all other such roads or streets: A.D. 1914.

- (3) In executing any diversions by this Act authorised of any roads or footpaths in the metropolitan boroughs of Stepney and Poplar the Company shall where there are existing any apparatus of the board divert into the new roads or footpaths the apparatus of the board laid in the existing roads or footpaths to be diverted. Provided that in carrying out such diversions the Company shall not remove the existing apparatus until the new apparatus shall have been laid down and connected at each end with the existing apparatus ready for use and shall not cause any leakage from such apparatus or interrupt the supply of water by means thereof for any longer period than shall be actually necessary for the purpose of making the connexions:
- (4) Notwithstanding the stopping up temporarily of any road or street under the powers of this Act the board their engineers workmen and others in their employ shall at all times have all such rights of access to all or any of the apparatus of the board situate in or under any such road or street as they had immediately before the passing of this Act and shall be at liberty to do all such works at their own expense in and upon such road or street as may be necessary for inspecting repairing maintaining removing or extending such apparatus:
- (5) Not less than twenty-eight days before commencing any of the works by this Act authorised (including all such works as are referred to in the foregoing provisions of this section) in any street or road in or under which any apparatus of the board is situate which may affect any such apparatus the Company shall deliver to the board a plan section and description of such works describing the proposed manner of executing the same:
- (6) The board may at any time within twenty-eight days of the receipt of such plans sections and descriptions by notice in writing intimate to the Company their

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requirements so far as such works involve interference with the apparatus of the board and they may (in addition to any other rights or powers conferred upon them by this section) require the Company to provide and lay down such works and apparatus as may be specified by the board and to remove raise sink or otherwise alter the position of the apparatus and support the same and to substitute temporarily or otherwise other apparatus in such manner as may be specified by the board and to lay or place under any apparatus cement concrete or any other like substance Any difference between the board and the Company under this subsection shall be determined by arbitration as herein-after provided Provided that if the board shall not within the said period of twenty-eight days give any such notice in writing to the Company as aforesaid they shall be deemed to have no requirements to intimate to the Company :

- (7) The Company shall not carry out such works as aforesaid except in strict accordance with the said plan section and description delivered to the board and shall carry out all works in connexion with the apparatus of the board as may be approved by the board or settled by arbitration :
- (8) The Company in executing any works under this Act or in removing raising sinking or otherwise altering the position of any apparatus of the board shall make good all damage done by them to the apparatus or other property of the board and shall make compensation to the board for any loss or damage which they may sustain by reason of any interference with their apparatus or property :
- (9) Not less than twenty-eight days before commencing the construction of any such works as aforesaid the Company shall give to the board notice in writing of their intention to commence such construction and shall state in such notice the place and time at which they propose so to commence and if within fourteen days after the receipt of such notice the board shall give notice to the Company of their intention themselves to lay down any substituted apparatus or to execute any other works referred to

in this section to or in connexion with any apparatus of the board it shall be lawful for the board instead of the Company to lay down such apparatus or execute such works and the cost incurred by them in so doing shall on demand be repaid to the board by the Company:

- (10) The Company shall not raise sink or otherwise alter the position of any apparatus of the board or alter the level of any street or road in which any such apparatus is situate so as to leave over such apparatus when the works are completed a covering of less than three feet unless they shall in such case protect such apparatus from frost or injury by artificial covering or by the substitution of steel pipes embedded in concrete for cast-iron pipes to the satisfaction of the board or of more than five feet:
- (11) The board may if they deem fit employ watchmen or inspectors to watch any works to be executed by the Company under this section or any other provision of this Act whereby any apparatus of the board will or may be interfered with or affected and the reasonable expenses thereof shall be borne by the Company and be paid by them upon demand to the board:
- (12) The reasonable expenses of all repairs or renewals of any apparatus of the board or any works in connexion therewith which may at any time within twelve months from the completion of the works of the Company be rendered necessary by or in consequence of the acts or defaults of the Company their contractors agents workmen or servants or any person in the employ of them or any of them or rendered necessary by reason of any subsidence resulting from the works of the Company whether during the construction of such works or at any time within twelve months thereafter shall be borne by the Company and paid by them on demand to the board:
- (13) If any interruption in the supply of water by the board shall without the written authority of the board be in any way occasioned either by the execution or failure of the works by this Act authorised or of any protective works or by any

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act omission or default of the Company or any of their contractors agents workmen or servants or any person in the employ of them or any or either of them the Company shall pay to the board all loss costs damages and expenses which the board may sustain or incur by reason of such interruption:

- (14) Wherever by reason or in consequence of the stopping up under the powers of this Act of any street or road any apparatus of the board situate in or under the streets or roads so stopped up shall be rendered derelict or unnecessary the Company shall forthwith after such stopping up pay to the board such a sum as may be agreed between the board and the Company or as failing such agreement may be determined by arbitration as herein-after provided to be the value of—

(A) The apparatus situate in and under the street or road so stopped up; and

(B) Any apparatus of the board connected with the property of the board and used exclusively for the purposes of the supply of water to any premises to which a supply is furnished by means of the apparatus in and under the street or road so stopped up:

- (15) In addition to the payment referred to in the last preceding subsection of this section the Company shall pay to the board their reasonable charges of and incidental to the cutting off of any such apparatus as is referred to in the said subsection from any other apparatus of the board and of and incidental to any other works or things rendered necessary in consequence of any apparatus of the board being rendered derelict or unnecessary by the stopping up of streets or otherwise:

- (16) If any difference shall arise between the board and the Company with respect to any questions which are under the provisions of this section to be determined by arbitration the matter in difference shall be referred to and settled by an arbitrator to be agreed upon or failing such agreement to be appointed on the application of either party by the President of

the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such settlement by arbitration. A.D. 1914.

33. For the protection of the Gas Light and Coke Company (in this section referred to as "the gas company") the following provisions shall unless otherwise agreed in writing between the gas company and the Company apply and have effect (that is to say):— For protection of Gas Light and Coke Company.

(1) Notwithstanding anything contained in this Act or shown on the deposited plans the Company shall not purchase or take any part of the property of the gas company in the metropolitan borough of Poplar which is shown on the said plans and thereon numbered 43 in the said borough or of the sidings extending across and from the said property to the North London Railway and the London and Blackwall Railway (in this section referred to as "the said sidings") but the Company may purchase and the gas company shall if so required by the Company grant to them the easement or right of making and maintaining subject to the provisions of this section and to the other provisions of this Act the Stepney and Bromley Railway over any part of the said property or of the said sidings. The consideration to be paid by the Company to the gas company for the acquisition of such easement or right as aforesaid shall in default of agreement be determined in accordance with the provisions of the Lands Clauses Acts for the determination of cases of disputed compensation:

(2) The Company shall not place any pier or column for the viaduct carrying the Stepney and Bromley Railway upon any part of the bridge carrying the said sidings and the railways of the London and Blackwall Railway Company and the North London Railway Company over Cantrell Road or in such a position as to prevent or interfere with the safe and uninterrupted working and use in as full and free a manner as at present of the said sidings and the Company shall place any pier or column for the viaduct required to be built on the property of the gas

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company as close as is reasonably possible to the London and Blackwall Railway and so as not to prevent access to Fairfoot Road:

- (3) The said viaduct shall be carried across and over the said sidings with a clear headway throughout of not less than fourteen feet measured from the level of the rails of the said sidings:
- (4) No part of the viaduct for carrying the Stepney and Bromley Railway where it passes near to or over the property of the gas company numbered 43 as aforesaid shall be constructed within a distance of fifty-eight feet from the pivoting point of the north-easternmost of the two hydraulic cranes of the gas company at the passing of this Act erected on the said property as shown upon a plan signed by William Barton Worthington on behalf of the Company and Thomas Goulden on behalf of the gas company And the gas company shall not be responsible for any damage or injury which may be caused to the said viaduct or any works of the Company by or in consequence of the reasonable working by the gas company or their servants of the said crane:
- (5) The Company shall at all times maintain and keep in good repair to the reasonable satisfaction of the gas company so much of the said viaduct as shall be constructed over any part of the said property of the gas company or of the said sidings:
- (6) Not less than twenty-one days before commencing to construct so much of the said viaduct or of any other works in connexion therewith as will be situate over the said property of the gas company or the said sidings or over any lands or premises within a distance of forty yards measured in each direction along the centre line of the said railway as shown on the deposited plans from the northern and north-western boundaries respectively of the property of the gas company the Company shall submit to the gas company for their reasonable approval plans sections and descriptions of the said portion of viaduct and works showing the position of all piers and

columns proposed to be placed or constructed within the said distance for or in connexion with the said viaduct and the Company shall construct the said viaduct and works in accordance with the plans sections and descriptions as approved by the gas company or in case of difference between the Company and the gas company settled by arbitration as herein-after provided. Provided that if for twenty-one days after the submission of such plans sections and descriptions the gas company do not disapprove the same and state their reasonable requirements in relation thereto they shall be deemed to have approved thereof :

- (7) The said portion of viaduct and works shall be executed by and at the expense of the Company but to the reasonable satisfaction and under the supervision (if given) of the engineer of the gas company :
- (8) The Company shall make good all damage done by them to the said property of the gas company shown on the deposited plans and numbered 43 in the said borough or to the said sidings in the execution of the works by this Act authorised and shall make full compensation to the gas company for any loss or damage which they may sustain by reason of any interference with such property or sidings :
- (9) The gas company may if they deem fit employ watchmen or inspectors to watch the works during execution affecting the said property numbered 43 on the deposited plans as aforesaid and the said sidings and the reasonable expense thereof so far as such expense may be agreed or in case of difference be determined as herein-after provided to have been reasonably necessary shall be borne by the Company and be paid by them upon demand to the gas company :
- (10) All works matters or things which under the provisions of the Railways Clauses Consolidation Act 1845 or this Act the Company may be empowered or required to do or execute with reference to the mains pipes apparatus or works (in this section referred to as "apparatus")

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of the gas company shall be done and executed by and at the cost of the Company but to the reasonable satisfaction and in such manner as shall be reasonably required by the engineer of the gas company and such works matters or other things shall not be commenced until after fourteen days' previous notice thereof in writing shall have been given to the gas company Provided always that if the gas company shall elect themselves to execute any portion of the works matters and things which the Company may by this Act be empowered or required to do or exercise with reference to the apparatus of the gas company and of such their election shall give seven days' notice in writing to the Company by forwarding the same to their head office in Derby the gas company may themselves execute that portion of the said works matters and things and the reasonable expense of and incident to such execution shall be repaid by the Company to the gas company on demand:

- (11) The Company shall not raise sink or otherwise alter the position of any apparatus of the gas company or alter the level of any street road or other place in which any such apparatus is situate so as to leave over such apparatus a covering of less than three feet where the covering now existing is not less than three feet unless the Company shall in such case protect such apparatus from frost or injury by artificial covering to the reasonable satisfaction of the gas company or more than five feet where the covering now existing does not exceed five feet or more than the existing covering where such existing covering exceeds five feet unless the Company in either of such last-mentioned cases provide special means of access to the same to the satisfaction of the engineer of the gas company Provided that where any bridge carrying a road over a railway is constructed or altered under the powers of this Act and the roadway on such bridge is not of sufficient depth for the laying therein of any apparatus of the gas company with a covering of three feet the Company shall if so required by the gas company grant to the gas company free of charge all necessary facilities for carrying such apparatus over the railway

alongside of such bridge and either attached thereto or (at the option of the gas company) separate therefrom The Company shall on demand repay to the gas company the cost of so carrying across the railway any apparatus of the gas company existing at the passing of this Act: A.D. 1914.

- (12) If any interruption whatsoever in the supply of gas by the gas company or any loss of gas shall be in any way occasioned to or sustained by the gas company by reason of any act or omission of the Company or of any of their contractors agents workmen or servants the Company shall pay to the gas company all costs incurred by them in making good such interruption and in addition shall pay to the gas company the value of the gas so lost:
- (13) The Company shall indemnify and hold harmless the gas company from and against all claims proceedings costs charges and expenses arising out of or in connexion with any subsidence of or injury or accident to the said sidings or any apparatus of the gas company by reason or in consequence of the construction or failure or user of the said viaduct:
- (14) The reasonable expenses of all repairs or renewals of any apparatus of the gas company or any works in connexion therewith which may at any time be rendered necessary by or in consequence of the acts or defaults of the Company their contractors agents workmen or servants or any person in the employ of them or any of them or rendered necessary by reason or in consequence of any subsidence resulting from the works of the Company whether during the construction of such works or at any time thereafter shall be borne by the Company and paid by them on demand to the gas company:
- (15) Notwithstanding the stopping up temporarily of any street road or other public place in which any apparatus of the gas company shall be laid the gas company their engineers workmen and others in their employ shall at all times have full free and uninterrupted rights of access to all or any such apparatus and shall be at liberty to do all such works in and upon

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any such street road or place as aforesaid as may be necessary for inspecting repairing maintaining removing replacing or extending such apparatus:

(16) Where the Company shall under the powers of this Act divert any road or footpath in which any apparatus of the gas company is or may be laid down or placed the gas company may lay down or place new apparatus in the new portion of road or footpath and connect the same with the apparatus laid or placed in the said road or footpath at the commencement and termination of the diversion. The Company shall on demand repay to the gas company the cost of providing such new apparatus and the costs charges and expenses incurred by the gas company in or in connexion with the laying down or placing of the same and the formation of such connexions and thereupon the apparatus of the gas company laid down or placed in the existing road or footpath between the commencement and the termination of the diversion thereof shall become the property of and vest in the Company. Provided that if the new apparatus so laid down or placed by the gas company shall be of larger size than that of the existing apparatus in the diverted road or footpath the Company shall only be required to repay to the gas company such proportion of the cost of providing and laying down or placing the new apparatus as shall represent the cost which would have been incurred by the gas company in providing and laying down or placing apparatus of similar size to that of the said existing apparatus:

(17) If any difference shall arise between the gas company and the Company with respect to any matters under this section for the determination of which no other provision is made by this section or concerning any of the said plans sections and descriptions the matter in difference shall be referred to and settled by an arbitrator to be agreed upon or failing such agreement to be appointed on the application of either party by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such settlement by arbitration.

34. In the construction maintenance and repair of the bridge carrying the Stepney and Bromley Railway over the Regent's Canal (in this section called "the new bridge") the following provisions shall unless otherwise agreed between the Company and the Regent's Canal and Dock Company (in this section called "the canal company") under their respective common seals apply and have effect:—

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For protection of Regent's Canal and Dock Company.

- (1) Nothing in this Act contained shall compel the canal company to convey or assign to the Company the fee simple of any part of the Regent's Canal (in this section called "the canal") or any lands belonging to the canal company forming part of the canal but the Company may purchase and take and the canal company may and shall sell and grant such an easement or right in or over the canal and the said lands as may be necessary for executing constructing maintaining repairing renewing and using the works by this Act authorised and the provisions of the Lands Clauses Consolidation Act 1845 with respect to the taking of lands otherwise than by agreement shall extend and apply to the acquisition of such easement:
- (2) In constructing the new bridge over the canal the Company shall not make any deviation from the line or level of the said railway as delineated and described on the deposited plans and sections thereof so as to diminish the headway of the new bridge over the canal without the consent of the canal company in writing under their common seal first had and obtained:
- (3) Subject and without prejudice to the due execution of the works by this Act authorised the Company shall not divert or intercept cut off take use or diminish any of the waters in the canal or which may be taken for the use of or which supply the canal or interfere with any of the works of the canal or diminish or alter the width of the waterway of the canal or the towing-path thereof:
- (4) The Company shall construct the new bridge with one clear span of not less than seventy feet measured at right angles to the faces of the abutments and so that no part of the underside of the new bridge shall be less than sixteen feet above the level of the waste water at the Salmon's Lane Lock:

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- (5) The new bridge shall be constructed according to plans and sections to be submitted to and approved by the canal company previously to the commencement of the works or in case of difference between the canal company and the Company to be approved by an arbitrator to be appointed as herein-after provided and such works shall be carried on and completed under the superintendence (if the same be given) and to the reasonable satisfaction of the engineer of the canal company. Provided that if the canal company shall not signify their disapproval of the said plans and sections within twenty-one days after the same shall have been submitted to them they shall be deemed to have approved the same :
- (6) The Company shall before commencing the works in this section referred to give to the canal company seven days' notice in writing of their intention so to do. The said works shall be carried on and completed so and in such manner that no obstruction shall be caused by such works or by any temporary works to the boats or barges navigating the canal or the horses towing the same and the Company shall not during the progress of the said works and of any necessary repairs or renewals thereof diminish or alter the width of the waterway of the canal or of the towing-path thereof or lower the headway of the new bridge below the height of sixteen feet above the level of the waste water at the Salmon's Lane Lock aforesaid. And the canal company shall afford all facilities to the Company for the erection of such temporary staging and works in the waterway and on the towing-path of the canal as may be reasonably necessary for the erection repair or renewal of the new bridge. Provided that the Company shall pay the reasonable and proper charges of the canal company for such accommodation. The new bridge when constructed shall be for ever thereafter maintained in good and substantial repair by the Company :
- (7) The Company shall after the commencement of any of the works in this section referred to which affect the canal proceed with and complete the same within a period of twelve months from the commencement of the said works :

- (8) If and whenever during the progress of any of the works referred to in this section or any repairs thereof any damage or injury is occasioned to the canal and towing-path or the works thereof respectively the Company shall under the superintendence and to the reasonable satisfaction of the canal company's engineer restore the same to the same state and condition as before the happening of the damage or injury : A.D. 1914.
- (9) If and whenever during or after the carrying out or the making or repairing of any of the works in this section referred to or any works connected therewith and by reason of such works or of the carrying out or the making or repairing of the same or by reason of any failure or want of repair of the same any loss of water or any obstruction of the navigation of the canal occurs and notice in writing is given by or on behalf of the canal company to the Company and the Company do not within twenty-eight days after the notice or forthwith if the nature of the case so requires well sufficiently and effectually prevent the loss of water or remove the obstruction and make or do for the purpose under the superintendence (if the same be given) and to the reasonable satisfaction of the canal company's engineer all proper and sufficient works repairs and things and complete the same with all reasonable expedition the canal company may from time to time under the superintendence and to the reasonable satisfaction of the Company make or do all such works and things as may be necessary for such prevention and removal and the Company shall from time to time pay to the canal company the reasonable costs and expenses incurred by them in that behalf :
- (10) Subject and without prejudice to the due execution of the works hereby authorised nothing in this Act or in the Acts wholly or partially incorporated with this Act contained shall take away diminish or affect any rights privileges or powers vested in the canal company :
- (11) Nothing herein contained shall prevent the canal company from recovering from the Company the amount

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of any special damage sustained by them by reason of the act neglect or default of the Company and the canal company may sue for and recover such special damage in any court of competent jurisdiction :

(12) The Company shall bear and on demand pay the reasonable charges of the canal company's engineer for his superintendence on behalf of the canal company of the execution of the works in this section referred to :

(13) If any difference arises between the Company and the canal company touching this section such difference shall be determined by an engineer to be appointed by the President of the Institution of Civil Engineers upon the application of either party in accordance with the provisions of the Arbitration Act 1889.

For protection of
Essex
Sewers Commissioners.

35. For the protection of the commissioners of sewers for the levels of Havering and Dagenham Ripple Barking East Ham Leyton and Walthamstow and the commissioners of sewers for the levels of Rainham Wennington West Thorock and Aveley Chadwell Little Thorock and Grays East Tilbury West Tilbury and Childerditch in the county of Essex (in this section called "the commissioners") the following provisions shall unless otherwise agreed between the Company and the commissioners have effect (that is to say):—

Nothing in this Act contained shall authorise or empower the Company to cut alter stop up divert or otherwise interfere with any river walling banks foreshore sluices outfalls penstocks sewers watercourses bridges culverts works and defences within and under the jurisdiction of the commissioners without the consent of the commissioners in writing and the Company shall previously thereto submit to the commissioners for approval plans and drawings showing all details of any such works proposed by the Company to be carried out Any additional expense involved in the maintenance by the commissioners of any new altered or substituted works sanctioned by them and carried out by the Company under the powers of this Act shall be borne by the Company and all such works shall be made and done to the satisfaction of the commissioners' engineer and the same shall to all intents and purposes be works within and under the commissioners' jurisdiction and control.

36. For the protection of the county council of the administrative county of Essex (in this section referred to as "the council") the following provisions shall notwithstanding anything contained in this Act or the Acts incorporated therewith or shown upon the deposited plans and sections have effect unless otherwise agreed in writing (that is to say):—

A.D. 1914.
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For protection of
Essex
County
Council.

(1) The Company shall not enter upon take use or in any way interfere with any portion of the lands known as Upney Farm Barking and numbered on the deposited plans 29 and 32 in the urban district of Barking Town held by the council for the purposes of small holdings other than a strip of land next adjoining the Company's existing railway and the northern approach to the bridge carrying Upney Lane over the railway and not exceeding in width at any point thirty-three feet:

(2) If the Company alter the level of that portion of the main road from Rainham to Beacontree Heath which forms the northern part of the bridge over the Company's railway at Dagenham Station they shall at the same time alter the gradient thereof and of the northern approach thereto so that such gradient shall not at any point exceed one in thirty Provided that from and after the expiration of one year from the completion of the said works of alteration the liability of the Company to maintain the said approach shall not extend for a greater distance than ninety-three yards from the southern abutment of the said bridge:

(3) Notwithstanding anything contained in the section of this Act whereof the marginal note is "Company not bound to maintain surface of roads &c. unless level permanently altered" the Company shall remain and be liable to maintain the surface of any county road which shall be carried over the Barking and Upminster Railway of the Company by an existing bridge or bridges and the immediate approaches thereto for the maintenance of which the Company is liable immediately before the passing of this Act.

37. For the protection of the urban district council of Barking Town (in this section referred to as "the urban district")

For protection of
Barking

A.D. 1914. and "the council" respectively) the following provisions shall notwithstanding anything in this Act contained or shown upon the deposited plans and sections apply and have effect:—
 Town Urban District Council.

In the execution of the works in connexion with the Barking and Upminster Widening by this Act authorised the Company shall so far as such works are situate within the urban district observe and perform the following conditions:—

(A) The Company shall carry out the said widening on the north side of their existing railways at the footbridge marked 5 on the deposited plans of the urban district of Barking Town;

(B) The new bridge over the said widening at Gale Street within the urban district and any approach thereto that may be constructed by the Company under the provisions of this Act shall be constructed of a width of not less than forty feet between the parapets or fences thereof respectively;

(C) The new bridge over the said widening at Upney Lane within the said district that may be constructed by the Company under the provisions of this Act shall be constructed of a width of not less than forty feet between the parapets. If the levels of the existing approach to the bridge on the north side of the railway shall be altered in the execution of the works by this Act authorised the Company shall construct such approach of a width of forty feet for its entire length;

(D) Where the said widening passes over any sewers or surface water drains belonging to the council the Company shall at their own cost and in accordance with the conditions imposed on the council by the Company by the agreement dated the twenty-sixth day of July one thousand nine hundred and six and made between the London Tilbury and Southend Railway Company and the council execute and carry out to the reasonable satisfaction of the council or their surveyor all such works as may be necessary to prevent damage to such sewers and surface drains.

For protection of Romford Urban District Council.

38. The Company shall not except with the previous consent in writing of the Romford Urban District Council enter upon purchase or acquire under the powers of this Act any of the lands

of the said council numbered on the deposited plans 3 4 5 and 6 in the parish of Hornchurch other than the parts of numbers 3 and 6 coloured red on a plan signed by William Barton Worthington on behalf of the Company and Charles Thomas King on behalf of the said council. A.D. 1914.

39. In carrying out the Hornchurch Curve and the Barking and Upminster Widening by this Act authorised the following provisions for the protection of the rural district council of Romford (in this section referred to as "the council") shall notwithstanding anything shown on the deposited plans and sections or contained in this Act have effect unless otherwise agreed upon in writing between the Company and the council (that is to say):—

For protection of Romford Rural District Council.

(1) The Company shall widen the bridge carrying Hall Lane and part of Station Road over the railway of the Company and the approaches thereto to the width of forty feet throughout between the parapets or fences thereof and the approach on the northern side of the said bridge shall be on a gradient not steeper than the present one viz. 1 in 42:

(2) The Company shall make the gradients of the bridge approach roads on the north side of the railway not steeper than 1 in 30 at the following roads (that is to say):—

- (A) Halbutt Street;
- (B) South End Road;
- (C) Hacton Road;
- (D) Cambey's Road;

The Company shall make such last-mentioned road (which is a sub-approach road) of not less width than at present:

(3) The Company shall construct and at all times maintain five bridges each of not less than five feet in width for foot passengers over the railway at the under-mentioned places in lieu of the existing level crossings and upon the completion and opening of such bridges for public use all rights of way for foot passengers over the said level crossing shall cease (that is to say):—

- (A) In the parish of Dagenham near Ivy House Lane at the spot marked 6a on the said plans;

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(B) In the said parish of Dagenham near Ford's Schools at the spot marked 21a on the said plans;

(c) In the said parish of Dagenham near Rock Lane between two existing footpaths marked 25a and 25b on the said plans;

(D) In the said parish of Dagenham near Cooper's Farm at a spot marked 44a on the said plans;

(E) In the parish of Hornchurch near Wyebridge Farm at a spot marked 7b on the said plans:

(4) In carrying out the diversion of Ivy House Lane (numbered 2 on the deposited plans) the Company shall make the diverted portions thereof of uniform widths of twenty feet between suitable fences which the Company shall provide and erect and the Company shall form the diverted roadways for a uniform width of twelve feet with foundations of hard broken bricks or other suitable material to a depth of nine inches after consolidation and the surface shall be covered with two-inch broken granite or other suitable hard stone to a depth of four inches and the levelling metalling rolling and making good shall be completed to the reasonable satisfaction of the council:

(5) In carrying out the diversion of the footpaths near Rock Lane numbered on the deposited plans 25 25a and 26 and 25 25b and 26 the footpath near South End Road numbered 12 13a and 13 and the footpath numbered 5 in the parish of Cranham the Company shall make the diverted footpaths of not less width than five feet:

(6) The Company shall remain liable to maintain the surface of all roads or public highways which are carried over the railways of the Company in the district of the council by bridges and the immediate approaches thereto whether the levels of such roads public highways or approaches are altered or not:

(7) The provisions of this section shall be in addition to and not in derogation of any other provisions contained in this Act and the enactments incorporated therewith protecting the rights and interests of the council:

(8) If any difference or dispute shall arise between the Company and the council under or in relation to any provisions of this section such difference or dispute shall be determined by arbitration by an engineer to be appointed (unless otherwise agreed) by the President of the Institution of Civil Engineers upon the application of either party and otherwise in accordance with the provisions of the Arbitration Act 1889. A.D. 1914.

40. For the protection of the Ilford Urban District Council (in this section referred to as "the council") the following provisions shall have effect unless otherwise agreed in writing between the Company and the council (that is to say):— For protection of Ilford Urban District Council.

(1) The Company shall before laying down any additional lines of rails on lands immediately to the west of Upney Lane in the parish of Barking and urban district of Barking Town (numbered on the deposited plans of the Barking and Upminster Widening 29 and 30 in the said urban district) afford at their own expense and to the reasonable satisfaction of the surveyor of the council proper and adequate protection to the existing sewer of the council running from their sewage outfall works to the River Thames and passing in under or through such lands:

(2) The Company shall afford to the council at all times all reasonable and free facilities for obtaining access to so much of the said sewer (including any gullies grids manholes and other appurtenances thereof) as passes in through or under such portion of the said scheduled lands referred to in subsection (1) hereof as may be purchased by the Company under the powers of this Act for the purpose of inspecting repairing cleansing or otherwise attending to the same Provided that whenever it may be necessary to enter upon the property of the Company for the purpose of such repair or of opening the ground for examination of the sewer the council shall give to the Company three clear days' notice in writing of the time at which they desire so to do and the work required to be done if and so far as it may affect the traffic on the Company's railway shall be done

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under the direction and to the satisfaction of the Company's engineer and at a time to be arranged with the Company Provided also that in case of a fracture of the said sewer or of any other emergency or at any time in order to protect their respective works either the Company or the council may without previous notice to the other execute any temporary works of repair of the said sewer which they respectively may consider necessary to avert immediate danger :

(3) The Company shall defray and bear the expense of making good any damage which may from time to time be done to the said sewer and appurtenances by reason or as the result directly or indirectly of the laying down of the said additional line or lines of rails :

(4) Any difference which shall arise between the Company and the council under the provisions of this section shall failing agreement between and on the application of either of them be referred to and determined by an engineer to be appointed by the President of the Institution of Civil Engineers and the provisions of the Arbitration Act 1889 shall apply to any such reference.

For protec-
tion of Rom-
ford Gas and
Coke Com-
pany
Limited.

41. Notwithstanding anything in this Act or shown on the deposited plans the Company shall not enter upon take or use any lands or property belonging to the Romford Gas and Coke Company Limited except with the previous consent in writing of that company.

Works below
high-water
mark to be
subject to
approval of
Board of
Trade.

42. Subject to the provisions of this Act any of the works authorised by this Act to be constructed on over or under tidal lands below high-water mark of ordinary spring tides in the River Bann shall be constructed only in accordance with such plans and sections and subject to such restrictions and regulations as previous to such works being commenced have been approved by the Board of Trade in writing under the hand of one of the secretaries or assistant secretaries of the Board of Trade.

Any alteration or extension of any such works shall be subject to the like approval.

If any such work be commenced or completed contrary to the provisions of this section the Board of Trade may abate

and remove the same and restore the site thereof to its former condition at the cost of the Company and the amount of such cost shall be a debt due from the Company to the Crown and shall be recoverable as a Crown debt or summarily. A.D. 1914.

43. The Company shall at or near the works below high-water mark in the River Bann hereby authorised during the whole time of the constructing altering or extending the same exhibit and keep burning at their own expense every night from sunset to sunrise such lights (if any) and take such other steps for the prevention of danger to navigation as the Board of Trade from time to time require or approve. Lights on works in River Bann during construction.

If the Company fail to comply in any respect with the provisions of this section they shall for each day in which they so fail be liable to a penalty not exceeding twenty pounds.

44. The Company shall at the outer extremity of their works below high water in the River Bann exhibit and keep burning from sunset to sunrise such lights (if any) and take such other steps for the prevention of danger to navigation as the Commissioners of Irish Lights shall from time to time direct. Permanent lights on works in River Bann.

If the Company fail to comply in any respect with the provisions of this section they shall for each day in which they so fail be liable to a penalty not exceeding twenty pounds.

45. In case of injury to or destruction or decay of the works below high-water mark in the River Bann by this Act authorised or any part thereof the Company shall lay down such buoys exhibit such lights or take such other means for preventing so far as may be danger to navigation in the said river as shall from time to time be directed by the Commissioners of Irish Lights and shall apply to those commissioners for directions as to the means to be taken and the Company shall be liable to a penalty not exceeding ten pounds for every month during which they omit so to apply or refuse or neglect to obey any direction given in reference to the means to be taken. Provision against danger to navigation in River Bann.

46. The Company shall as soon as reasonably practicable after the completion and opening for public traffic of the Coleraine Deviation take down and remove the existing bridge carrying the portion of the Company's railway by this Act authorised to be abandoned across the River Bann and shall also concurrently with the removal of the said bridge remove all fenders adjacent thereto. As to removal of existing bridge across River Bann.

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—
With respect
to opening
bridge over
River Bann.

47.—(1) The opening span of the bridge across the River Bann by this Act authorised as part of the Coleraine Deviation shall be kept closed across the said river except at such times as it shall be necessary to open the same for the passage of vessels but a vessel requiring to pass through the opening span of the bridge shall not be detained for any longer time than shall be sufficient to allow any engines carriages or trucks—

(A) Being in the section of the Company's railway extending from Castlerock to Coleraine;

(B) Standing at Castlerock or Coleraine stations respectively and being on the point of entering the said section between Castlerock and Coleraine;

to clear such section and to allow of the opening of the bridge And in respect of—

(c) Up trains not stopping at Castlerock Station and down trains not stopping at Coleraine Station;

vessels shall not be detained for any longer time than shall be necessary for such trains to pass through the sections between Bollarena and Coleraine and Macfin and Castlerock respectively as the case may be and subject as aforesaid the Company shall before proceeding to open the said bridge for public traffic and may from time to time thereafter make byelaws rules and regulations for approval and confirmation as herein-after provided with respect to the opening and closing of the said bridge respectively and the time and mode of vessels passing through the same and the position of vessels waiting for the opening of such bridge and such byelaws rules and regulations may impose penalties for any breach thereof All such byelaws rules and regulations shall be subject to the approval of the Coleraine Harbour Commissioners and if any dispute or difference shall arise between the Company and the harbour commissioners with reference to the said byelaws rules and regulations or the approval thereof such dispute or difference shall be determined by an arbitrator to be appointed by the Board of Trade upon the application of either party Provided that no such byelaws rules or regulations shall have any force or validity until the same have been approved and confirmed by the Board of Trade.

(2) Before submitting any byelaws rules or regulations under this section for the approval of the Coleraine Harbour Commissioners or the Board of Trade the Company shall submit such byelaws rules or regulations to the Honourable the Irish Society

who may make any representation to the Company and to the Coleraine Harbour Commissioners and the Board of Trade with reference thereto or for the extension thereof for the purpose of protecting their fisheries. A.D. 1914.

(3) A printed or written copy of any byelaws rules and regulations purporting to be made and confirmed under the authority of this section and signed by the secretary of the Company shall be conclusive evidence of the validity of such byelaws rules and regulations in any prosecution or proceeding under the same for any purpose.

48. For the protection of the Coleraine Harbour Commissioners (in this section called "the commissioners") the following provisions shall unless otherwise agreed between the commissioners and the Company apply and have effect (that is to say):— For protection of Coleraine Harbour Commissioners.

- (1) Notwithstanding anything contained in this Act or shown on the deposited plans and sections the Company shall construct the opening span of the bridge carrying the Coleraine Deviation over the River Bann of such width between the abutments as to afford a clear span measured at right angles to an imaginary line from the centre of the structure of the opening portion of the existing bridge to the centre of the opening span of the new bridge of not less than sixty-three feet six inches:
- (2) The Company shall bear and on demand pay to the commissioners the reasonable expense incurred by the commissioners in making any alteration of the guiding lights in the said river which it may be necessary to make in consequence of the construction of the said bridge:
- (3) If any difference shall arise between the commissioners and the Company under the provisions of this section such difference shall in default of agreement be referred to and settled by an engineer or other fit person to be appointed failing agreement by the President of the Institution of Civil Engineers on the application of either party and the costs and expenses of such arbitration shall be defrayed as the arbitrator shall direct.

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Confirming
agreement
with Cole-
raine Har-
bour Com-
missioners.

49. The agreement dated the eighth day of July one thousand nine hundred and fourteen and made between the Company of the one part and the Coleraine Harbour Commissioners of the other part as set forth in the First Schedule to this Act is hereby sanctioned and confirmed and shall as from the date of the opening for public traffic of the Coleraine Deviation be carried out by the said parties accordingly in lieu of the agreement scheduled to and confirmed by the River Bann Navigation Act 1885 and made between the Coleraine Harbour Commissioners and the Belfast and Northern Counties Railway Company and the agreement of the twenty-ninth day of July one thousand eight hundred and ninety-one and made between the same parties and as from the said date of opening of the Coleraine Deviation the Company may subject to and in accordance with the provisions of the agreement hereby sanctioned and confirmed maintain manage work and use the Coleraine Harbour Railway as therein defined.

Further
saving for
Postmaster-
General.

50. Nothing in this Act or in the agreement set forth in the First Schedule to this Act shall affect the rights of His Majesty's Postmaster-General under the Telegraph Act 1878 to place and maintain telegraphic lines in under upon along over or across the Coleraine Harbour Railway as defined in the said agreement and from time to time to alter such telegraphic lines and to enter upon the said railway for the purposes in the Telegraph Act 1878 specified and the Postmaster-General shall after the passing of this Act be at liberty to exercise all the rights aforesaid notwithstanding that the said railway is worked by the Company as freely and fully in all respects as he was entitled to do before the passing of this Act.

For protec-
tion of Irish
Society and
others.

51. For the protection of the Honourable the Irish Society (in this section called "the society") and their lessees the following provisions shall unless otherwise agreed between the Company and the society have effect (that is to say):—

- (1) Notwithstanding anything contained in this Act or shown on the deposited plans or described in the deposited book of reference the Company shall not acquire any portion of the bed or soil of the River Bann but the society shall if required by the Company grant and convey to the Company and the Company may acquire in consideration of the reconveyance to the society of the portion of the bed or

soil of the River Bann or easements therein to be reconveyed to them under the provisions of subsection (5) of this section and without any further payment in the nature of consideration therefor an easement of constructing and maintaining the Coleraine Deviation (in this section referred to as "the railway") across the River Bann and of a bridge with an opening span to carry the railway in accordance with the provisions of this Act and the provisions of the Lands Clauses Acts with reference to the acquisition of lands save as in this subsection otherwise provided shall apply to the acquisition of such easement as if the same were lands within the meaning of such Acts:

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- (2) Before constructing any works in connexion with the railway over the River Bann the Company shall submit to the society plans and sections of the bridge to be constructed over the said river. The Company shall also submit to the society details of the mode and method proposed to be adopted in constructing the same for their reasonable approval and the society may make such reasonable requirements with reference to the mode or method of construction of such bridge as may be reasonably necessary for the purpose of avoiding so far as possible any interference with their several fishery and the exercise by themselves or their lessees of their fishing rights and the Company shall comply with such requirements accordingly or in the event of their disagreeing with any such requirement or disputing the necessity for the same the matters in question shall be referred to arbitration under the provisions of this section and the bridge and works so far as they are to be constructed over the River Bann shall be constructed in accordance with such details and such requirements (if any) as may be agreed or settled by arbitration as aforesaid:
- (3) The Company shall not execute any works in the river below high water or demolish or remove any portion of the existing bridge carrying the Company's railway over the river between the first day of June and the thirty-first day of July inclusive in any year:

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- (4) Previous to the demolition or removal of the existing bridge carrying the railway of the Company over the River Bann the Company shall submit to the society for their reasonable approval details of the mode and method proposed to be adopted in demolishing and removing the same together with notice of the time at which the Company propose to commence the works of demolition and removal and the society may make such reasonable requirements with reference to the mode of demolition and removal and the details thereof and the time at which and within which the same shall be carried out and completed for the purpose of avoiding so far as possible any interference with their several fishery and the exercise by themselves or their lessees of their fishing rights and the Company shall comply with such requirements accordingly or in the event of their disagreeing with any such requirement or disputing the necessity for the same the matters in question shall be referred to arbitration under the provisions of this section and the Company shall as soon as reasonably practicable after the opening of the railway for public traffic demolish and take down the said existing bridge and completely remove all works and materials so far as the same may exist in the bed shores or banks of such river to the reasonable satisfaction of the society and in accordance with such details and such requirements (if any) as may be agreed or settled by arbitration as aforesaid and after the commencement of the works of demolition of the existing bridge the same shall be completed within eighteen months after such commencement:
- (5) Upon the completion of the demolition and removal of the existing bridge the Company shall reconvey to the society in exchange for the easement to be granted to the Company under subsection (1) of this section free of expense any portion of the bed and soil of the River Bann or easements therein or thereover which may be vested in them in connexion with the existing bridge:
- (6) In constructing the bridge over the River Bann and any works in connexion therewith and in the work

of demolition and removal of the existing bridge the Company shall interfere as little as may be with the several fishery of the society or with the exercise of any of the fishing rights of the society or their lessees and the Company shall take all reasonable precautions to avoid impeding capturing injuring or destroying the fish and fry and more especially the Company shall not carry out or permit any blasting operations in the said river otherwise than inside a cofferdam or cylinder and in such manner and at such times as may be reasonably approved by the society Provided that the Company shall be responsible for and make good to the society or their lessees any damage or injury which may have been caused or result from any such blasting operations and indemnify the society and their lessees from any claim resulting therefrom :

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(7) The society or their lessees may employ two persons to watch the operations of the Company in connexion with and during the construction of such works across the said river and works of demolition or removal of the existing bridge and for the purpose of preventing during such period as aforesaid any poaching operations by workmen or employees of the Company or their contractors during the construction of such works or such demolition or removal and the reasonable expense of the employment of such persons so far as such expense may be agreed or in case of difference determined as herein-after provided to have been reasonably necessary shall be repaid to the society or their lessees by the Company on demand :

(8) Except as in this section otherwise expressly provided any difference which may arise between the Company and the society as to any matter under this section shall in default of agreement be settled by an arbitrator to be agreed upon between the parties or failing agreement to be appointed by the President of the Institution of Civil Engineers and the costs and expenses of such arbitration shall be defrayed as the arbitrator shall direct.

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For protec-
tion of Cole-
raine Urban
District
Council.

52. For the protection of the Coleraine Urban District Council the following provisions shall notwithstanding anything contained in this Act or shown on the deposited plans and sections and except so far as may be otherwise agreed between that council and the Company apply and have effect (that is to say):—

(1) The Company shall not in connexion with the construction of the Coleraine Deviation alter the level of Millburn Road :

(2) The bridge to be constructed for carrying the said railway over the Millburn Road shall have a headway measured from the underside of the bridge to the bottom of the surface water channel in that road of not less than sixteen feet and in the event of the Company constructing the said railway where it crosses the said road substantially in accordance with the centre line shown on the deposited plans they shall construct the eastern abutment of the said bridge in line with the wall at the back of the footpath on the said road and immediately adjoining the end of the said wall.

Power to
Company
to acquire
lands for
general
purposes.

53. Subject to the provisions of this Act and in addition to the other lands which the Company are by this Act authorised to acquire the Company may enter upon take use and appropriate for the purposes of extending their stations sidings warehouses engine sheds workshops coal-wharves depôts mineral goods and other works and conveniences for the accommodation of their traffic and for providing accommodation for persons belonging to the working class who may be displaced in executing the powers of this Act or any other Act relating to the Company and for other purposes connected with their undertaking all or any of the lands following delineated on the deposited plans thereof and described in the deposited books of reference relating thereto and may exercise the powers herein-after mentioned (that is to say):—

In the county of Westmorland:—

Lands in the parish of Ormside in the rural district of East Westmorland lying on both sides of and adjoining the Company's railway from Settle to Carlisle between points 11 chains and 37 chains or thereabouts respectively measured in a north-westerly direction from the north-western side of Griseburn Quarry.

In the West Riding of the county of York:—

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Lands in the parish and urban district of Skipton lying on the north side of and adjoining the Company's railway from Skipton to Hellifield at its junction with the Company's branch from Skipton to Colne:

Lands in the parish and urban district of Rawmarsh lying on the south-east side of and adjoining the Company's railway from Derby to Leeds between points 18 chains and 24 chains or thereabouts respectively measured in a south-westerly direction from the south-western end of the Parkgate and Rawmarsh Station thereon.

In the county of Derby:—

Lands in the parish of Wormhill in the rural district of Chapel-en-le-Frith lying on the north-east side of and adjoining the Company's railway from Derby to Manchester between points 11 chains and 39 chains or thereabouts respectively measured in a north-westerly direction from the north-western face of the Peak Forest Junction Tunnel thereon:

Lands in the parish and borough of Chesterfield lying on the south side of and adjoining the Company's railway from Chesterfield to Brampton and on the west side of and adjoining Walton Walk:

Lands in the respective parishes of Eckington Killamarsh and Beighton in the rural district of Chesterfield lying on the east side of and adjoining the Company's railway from Derby to Leeds between points 9 chains and 39 chains or thereabouts respectively measured in a northerly direction from the northern end of the Killamarsh Station thereon:

Lands in the parish and urban district of Alfreton on both sides of and adjoining the Company's Pinxton Canal between points 9 chains and 53 chains or thereabouts respectively measured in a north-easterly direction along the said canal from the crossing of the Company's main line over that canal:

Lands in the parish and county borough of Derby and in the parish of Chaddesden in the rural district of Shardlow on the south-west side of and adjoining the Derby Canal and on the north-east side of and adjoining the boundary of the Company's property on the north-eastern side of

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their Chaddesden sidings and lying between points 4 chains and 36 chains or thereabouts respectively measured in a north-westerly direction along the said canal from the north-western face of the bridge over that canal near Highfield Cottages Provided that the Company shall not under the powers of this Act or the Acts incorporated therewith stop up divert or obstruct the public footpath passing along the northern side of the said lands :

Lands in the said parish and county borough of Derby lying on the south-east side of Nelson Street and the south-west side of Noble Street at or near the junction of those streets.

In the counties of Derby and Nottingham:—

Lands in the respective parishes of Sandiacre and Stanton-by-Dale in the rural district of Shardlow in the county of Derby and in the parish of Stapleford in the rural district of Stapleford in the county of Nottingham lying on the east side of and adjoining the Company's railway from Trent to Chesterfield and lying between the Stapleford and Sandiacre Station and the Stanton Gate Station on the said railway.

In the county of Nottingham:—

Lands in the parish and borough of Mansfield lying on the north-west side of and adjoining the Company's railway from Nottingham to Mansfield between points 1 chain and 15 chains or thereabouts respectively measured in a south-westerly direction from the footbridge crossing over the said railway at Tenter Lane :

Lands in the parish and urban district of Kirkby-in-Ashfield and in the parish and urban district of Sutton-in-Ashfield respectively lying on both sides of and adjoining the Company's railway from Nottingham to Mansfield between points 3 chains and 25 chains or thereabouts respectively measured in a southerly direction from the junction of the Company's branch railway to Sutton-in-Ashfield with the said Nottingham to Mansfield railway :

Lands in the parish of Colwick in the rural district of Basford on the south side of and adjoining the Company's railway from Nottingham to Lincoln and lying between

points 6 chains and 24 chains or thereabouts respectively measured in an easterly direction from the eastern side of the level crossing of the said railway known as Colwick Crossing. A.D. 1914.

In the county of Warwick:—

Lands in the parish of Kingsbury in the rural district of Tamworth lying on both sides of and adjoining the Company's railway from Kingsbury Junction to Baddesley Colliery between the bridge carrying the said railway over the road leading to Slateley Hall Farm and a point 29 chains or thereabouts measured in a south-westerly direction therefrom:

Lands in the parish city and county borough of Birmingham lying on the south side of and adjoining the Company's railway from Birmingham to Derby between points 1 chain and 7 chains or thereabouts respectively measured in a westerly direction from the western end of the Bromford Bridge Station thereon:

Lands in the parish city and county borough of Birmingham lying on the south side of and adjoining the Company's Washwood Heath sidings on their Birmingham to Derby railway and on the north side of and adjoining the Midland Railway Carriage and Wagon Company's Works:

Lands in the respective parishes of Arrow and Wixford in the rural district of Alcester lying on the west side of and adjoining the Company's Evesham to Redditch railway between points 5 chains and 30 chains or thereabouts respectively measured in a northerly direction from the northern end of the Wixford Station on the said railway.

In the county of Gloucester:—

Lands in the parish city and county borough of Bristol lying on the east side of and adjoining the Lower Yard on the Company's branch railway to Avonside Wharf and between and adjoining Avon Street and Barton Road.

In the county of Somerset:—

Lands in the parish city and county borough of Bath lying on the north side of and adjoining the Company's railway from Mangotsfield to Bath between points

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10 chains and 14 chains or thereabouts respectively measured in a westerly direction from the western side of Station Road where it crosses the said railway on the level.

In the county of Glamorgan:—

Lands in the parish of Llansamlet in the rural district of Swansea lying on both sides of and adjoining the Company's railway from Ynis-y-geinon Junction to Swansea between points 14 chains and 72 chains or thereabouts respectively measured in a northerly direction from the northern face of the bridge near Heol-lâs carrying the road leading from Felin-Frân to Birchgrove over that railway and the Company may stop up and discontinue so much of the existing footpath along the north-western side of the said railway as extends from the north-west face of the bridge carrying the said railway thereover near Sisters Pit to a point on the said footpath 44 chains or thereabouts south-west of the said bridge and may on the said lands make a new footpath in lieu thereof from the said bridge to the said point. The said new footpath shall be constructed to the reasonable satisfaction of the Swansea Rural District Council and the Company shall erect a fence between the said footpath and the stream.

In the county of **Hertford**:—

Lands in the parish and urban district of Harpenden lying on the north-east side of and adjoining the Company's railway from London to Bedford and on the south-west side of and adjoining Carlton Road at its junction with Station Road.

In the county of Middlesex:—

Lands in the parish and urban district of Hendon lying on the north-east side of and adjoining the Company's railway from London to Bedford between points 14 chains and 30 chains or thereabouts respectively measured in a south-easterly direction from the south-eastern end of the Mill Hill Station on the said railway.

In the county of Essex:—

Lands in the parish of Barking in the urban district of Barking Town lying on the south-west side of and

adjoining the Company's railway from London to Barking and on the north-west side of and adjoining Tanner Street opposite to the junction of Oxford Street therewith : A.D. 1914.

Lands in the parish of Dagenham in the rural district of Romford lying on and adjoining and on both sides of the Company's railway from Barking to Tilbury at the Dagenham Dock Station thereon extending for a distance of $11\frac{1}{2}$ chains or thereabouts measured in a westerly direction from the western side of Chequers Lane where it crosses the said railway on the level :

Lands in the parish and urban district of Tilbury lying on the east side of and adjoining the Company's Tilbury Station and between that station and the road known as Fort Road leading to the said station and adjoining and on both sides of the Company's railway from Tilbury to Southend-on-Sea near the Tilbury East Junction thereon :

Lands in the parish of Dunton in the rural district of Billericay lying on the north side of and adjoining the Company's railway from Barking to Pitsea and extending for a distance of 14 chains or thereabouts in an easterly direction from Dunton Road :

Lands in the parish of Lee Chapel in the rural district of Billericay lying on the south side of and adjoining the Company's railway from Barking to Pitsea between points 6 chains and 8 chains or thereabouts respectively measured in an easterly direction from the eastern end of the Laindon Station thereon :

Lands in the parish and borough of Southend-on-Sea lying on the north side of and near to and adjoining the Company's railway from Southend-on-Sea to Shoeburyness between points 7 chains and 26 chains or thereabouts respectively measured in an easterly direction from Thorpe Hall Avenue.

In the county of Kent :—

Lands in the parish and borough of Gravesend lying between and adjoining the north side of West Street and the south bank of the River Thames and on the east side of and adjoining the Company's depôt at their West Street Pier.

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In the county of Antrim:—

In the townland of Islandbane:—

Lands in the parish or Grange of Muckamore in the rural district of Antrim lying on the north side of and adjoining the Belfast and Northern Counties Railway of the Company from Belfast to Londonderry at Muckamore Goods Station:

In the townland of Ballyclare:—

Lands in the parish or grange of Doagh, in the urban district of Ballyclare lying on the south-east side of and adjoining the Belfast and Northern Counties Railway of the Company from Doagh to Larne near Ballyclare Narrow Gauge Station.

In the townland of Portrush:—

Lands in the parish of Ballywillin in the urban district of Portrush lying on the west side of and adjoining the Belfast and Northern Counties Railway of the Company from Coleraine to Portrush near Portrush Station.

In the county of Londonderry:—

In the Townland of Donnybrewer Level (Intake):—

Lands in the parish of Faughanvale in the rural district of Londonderry lying on the south side of and adjoining the Belfast and Northern Counties Railway of the Company from Belfast to Londonderry at Eglinton Station.

For protec-
tion of Bris-
tol Corpora-
tion.

54. For the protection of the lord mayor aldermen and burgesses of the city of Bristol (in this section referred to as “the corporation”) the following provisions shall notwithstanding anything in this Act contained and unless otherwise agreed in writing between the corporation and the Company apply and have effect (that is to say):—

- (1) The Company shall throw into the public highway and dedicate to the public use as part of Avon Street so much of the lands in the parish city and county borough of Bristol referred to in the section of this Act of which the marginal note is “Power to Company to acquire lands for general purposes” as is coloured red on the plan signed by the Right Honourable the Lord Barnard the Chairman of the

Committee of the House of Lords to whom the Bill for this Act was referred (of which plan one copy has been deposited in the Parliament Office of the House of Lords and one copy has been deposited in the Private Bill Office of the House of Commons) and thereupon the lands coloured blue on the said plan shall by virtue of this Act vest in and shall thereafter be the property of the Company :

- (2) Within six months of the passing of this Act the Company shall erect a sufficient fence or boundary wall along the line described on the said plan as "New line of street" between the points respectively marked "A" and "B" on the said plan and any fence or boundary wall so erected shall at all times be maintained and repaired by and at the expense of the Company but the corporation shall at their own expense carry out the necessary street works :
- (3) Unless all sewers and culverts belonging to the corporation and situated in the said lands shall be diverted in accordance with the provisions herein-after contained the Company shall before constructing or laying down any railways sidings buildings or other works upon the said lands or any part thereof give not less than twenty-eight days' notice in writing to the corporation of their intention so to do specifying the works so proposed to be constructed or laid down and they shall construct and shall at all times thereafter maintain such works as the corporation may reasonably require for the protection of the said sewers and culverts and also such further works as may be reasonably necessary for enabling the corporation to have access to such sewers and culverts ;

The corporation shall at all times have free and uninterrupted rights of entry to and upon the said lands for the purpose of obtaining access to the said sewers and culverts by means of such further works as last aforesaid :

- (4) If at any time the Company shall give to the corporation notice in writing of their desire that the said sewers and culverts shall be diverted from the said lands the corporation shall divert the said sewers and culverts (so far as the same are situate in the said

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lands) either into the lands of persons other than the Company or into the public streets or partly in one way and partly in the other so that such sewers and culverts as diverted shall be as efficient for the conveyance of sewage or drainage as at present and the Company shall on demand repay to the corporation the expenses reasonably incurred by the corporation in or in connexion with such diversion and the provision of any necessary manholes and the construction of any other works necessary in connexion with such diversion :

- (5) If any difference shall arise between the Company and the corporation under this section the matter in difference shall be referred to and determined by an arbitrator to be agreed upon between them or failing such agreement to be appointed on the application of either party by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

For protection of Butterley Company Limited.

55. For the purposes of the application of the Railways Clauses Consolidation Act 1845 to and in respect of the lands of the Butterley Company Limited acquired under the powers of this Act the prescribed distance referred to in section 78 of the said Act of 1845 shall be forty yards together with a further distance equal to one-half the depth of the mines or minerals below the surface level of such lands.

Power to Joint Committee to acquire lands.

56. Subject to the provisions of this Act the Joint Committee may enter upon take use and appropriate and may hold for the purposes of or connected with their undertaking the lands following or some of them delineated on the deposited plans and described in the deposited books of reference relating thereto (that is to say) :—

In the county of Norfolk :—

Lands in the parish of Hillington in the rural district of Freebridge Lynn lying on the south side of and adjoining the railway of the Joint Committee from Lynn to Melton Constable at or near the Hillington Station thereon :

Lands in the said parish and rural district lying on the north side of and adjoining the said railway of the Joint Committee half a mile or thereabouts east of Hillington Station. A.D. 1914.

In the county of Lincoln (parts of Kesteven) :—

Lands in the parish of Little Bytham in the rural district of Bourne lying on the north side of and adjoining the railway of the Joint Committee from Saxby to Bourne and adjoining and near to the Little Bytham Junction signal-box of the said Committee.

57.—(1) Subject to the provisions of this Act the Committee may make and execute in the lines or situation and according to the levels shown upon the deposited plans and sections relating thereto the bridge work herein-after mentioned and may enter upon take and use such of the lands delineated on the deposited plans thereof and described in the deposited book of reference relating thereto as may be required for that purpose (that is to say) :— Power to Committee to construct bridge work.

In the parish and borough of Hyde in the county of Chester :—

The widening on the south side thereof of the bridge carrying the Godley Branch Railway of the Committee over the public road known as Brookfold Lane.

(2) In the execution of the bridge work by this section authorised the Committee may deviate laterally from the lines or situation thereof shown on the deposited plans to any extent within the limits of deviation shown thereon and may deviate from the levels thereof shown on the deposited sections to any extent not exceeding one foot upwards or downwards.

58. The Committee may in the lines shown on the deposited plans thereof make a new footpath commencing by a junction with the public footpath leading from Gee Cross to Brookfold Lane in the parish and borough of Hyde in the county of Chester at a point $3\frac{3}{4}$ chains or thereabouts measured in a southerly direction from the centre of the level crossing by the said footpath of the Godley Branch Railway of the Committee and terminating by a junction with Brookfold Lane at a point $1\frac{1}{2}$ chains or thereabouts measured in a southerly direction from the face of the bridge carrying the Committee's said branch railway over that lane and all rights of way over so much of the Power to Committee to make new footpath.

A.D. 1914. existing public footpath as lies between the point of commencement of the new footpath above described and the junction of the said public footpath with Brookfold Lane and over the said level crossing shall by virtue of this Act be extinguished and the Committee may close the said level crossing :

Provided that the said rights shall not be extinguished nor the said level crossing be stopped up until the new footpath is completed to the satisfaction of the road authority and is open for public use or in case of difference between the Committee and such authority until two justices shall have certified that the new footpath has been completed to their satisfaction and is open for public use and before applying to the justices for their certificate the Committee shall give to the road authority seven days' notice in writing of their intention to apply for the same.

Power to
Committee
to acquire
additional
lands.

59. Subject to the provisions of this Act the Committee in addition to the other lands which they are by this Act authorised to acquire may enter upon take use and appropriate and may hold for the purposes of or connected with their undertaking the lands following or some of them delineated on the deposited plans and described in the deposited books of reference relating thereto (that is to say):—

In the county of Lancaster:—

Lands in the parish and county borough of Warrington lying on the north-east side of and adjoining the main line of the Committee from Warrington to Manchester and east of Heath Place Froghall Lane.

In the county of Chester:—

Lands in the parish and borough of Hyde lying on the south side of and adjoining the Godley Branch Railway of the Committee and extending westward for a distance of $15\frac{1}{4}$ chains or thereabouts measured from the western boundary of Brookfold Lane.

For protec-
tion of Hyde
Corporation.

60. The following provisions for the protection of the mayor aldermen and burgesses of the borough of Hyde (in this section called "the corporation") shall unless otherwise agreed in writing between the Committee and the corporation apply and have effect (that is to say):—

(1) If the corporation shall hereafter widen Brookfold Lane the Committee shall as soon as reasonably practicable on being required by the corporation so to do lengthen the bridge (as widened under the provisions of this

Act) which carries the Godley Branch Railway of the Committee over the said lane so as to provide a span not less than the average width of the said lane as so widened provided that the Committee shall not be required to provide a greater width between the abutments of the said bridge than thirty-six feet: A D. 1914.

- (2) The corporation shall afford to the Committee all necessary or proper facilities (including the provisions of any necessary lands and easements) for enabling the Committee to carry out such lengthening as aforesaid:
- (3) The corporation shall bear such proportion of the expense of and incidental to effecting such lengthening of the said bridge as the width of the said bridge as it existed prior to its being widened under the powers of this Act shall bear to the total width of the bridge after it is widened and shall also bear a like proportion of the increased cost of maintaining the widened bridge by reason of its being so lengthened:
- (4) Nothing in this section contained shall be deemed to relieve the corporation from purchasing any land of the Committee which the corporation may require for the purpose of carrying out any widening of Brookfold Lane:
- (5) The Committee shall sell to the corporation any land of the Committee required for the purpose of carrying out any widening of Brookfold Lane at a price per square yard to be agreed upon:
- (6) The Committee shall provide a lamp for lighting the roadway under the said bridge and carry a gas pipe to such lamp and the corporation shall afterwards bear the cost of lighting and maintaining such lamp:
- (7) The Committee shall make the footpath referred to in the section of this Act of which the marginal note is "Power to Committee to make new footpath" not less than three feet in width and shall connect the same with Brookfold Lane by convenient and suitable steps and the said footpath when completed shall be maintained by and at the expense of the Committee:
- (8) If any difference shall arise between the Committee and the corporation under this section such difference shall be referred to and determined by an engineer to be

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agreed on or failing such agreement to be appointed on the application of either party by the President of the Institution of Civil Engineers and the provisions of the Arbitration Act 1889 shall apply to any such reference.

As to private
rights of way
over lands
taken com-
pulsorily.

61. All private rights of way over any lands which are under the powers of this Act authorised to be acquired compulsorily shall as from the date of their acquisition be extinguished. Provided that the Company or the Joint Committee or the Committee as the case may be shall make full compensation to all parties interested in respect of any such rights and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement.

Period for
compulsory
purchase of
lands.

62. The powers granted by this Act for the compulsory purchase of lands shall cease after the expiration of three years from the passing of this Act.

Persons
under dis-
ability may
grant ease-
ments &c.

63. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Company the Joint Committee or the Committee as the case may be any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

Owners may
be required
to sell parts
only of cer-
tain proper-
ties.

64. And whereas in the construction of the works by this Act authorised or otherwise in the exercise by the Company of the powers of this Act it may happen that portions only of certain properties shown or partly shown on the deposited plans will be sufficient for the purposes of the Company and that such portions or some other portions less than the whole can be severed from the remainder of the said properties without material detriment thereto Therefore the following provisions shall have effect:—

- (1) The owner of and persons interested in any of the properties whereof the whole or part is described in the Second Schedule to this Act and whereof a portion only is required for the purposes of the Company or

each or any of them are in this section included in the term "the owner" and the said properties are in this section referred to as "the scheduled properties":

A.D. 1914.

- (2) If for twenty-one days after the service of notice to treat in respect of a specified portion of any of the scheduled properties the owner shall fail to notify in writing to the Company that he alleges that such portion cannot be severed from the remainder of the property without material detriment thereto he may be required to sell and convey to the Company such portion only without the Company being obliged or compellable to purchase the whole the Company paying for the portion so taken and making compensation for any damage sustained by the owner by severance or otherwise:
- (3) If within such twenty-one days the owner shall by notice in writing to the Company allege that such portion cannot be so severed the jury arbitrators or other authority to whom the question of disputed compensation shall be submitted (herein-after referred to as "the tribunal") shall in addition to the other questions required to be determined by it determine whether the portion of the scheduled property specified in the notice to treat can be severed from the remainder without material detriment thereto and if not whether any and what other portion less than the whole (but not exceeding the portion over which the Company have compulsory powers of purchase) can be so severed:
- (4) If the tribunal determine that the portion of the scheduled property specified in the notice to treat or any such other portion as aforesaid can be severed from the remainder without material detriment thereto the owner may be required to sell and convey to the Company the portion which the tribunal shall have determined to be so severable without the Company being obliged or compellable to purchase the whole the Company paying such sum for the portion taken by them including compensation for any damage sustained by the owner by severance or otherwise as shall be awarded by the tribunal:

A.D. 1914.

- (5) If the tribunal determine that the portion of the scheduled property specified in the notice to treat can notwithstanding the allegation of the owner be severed from the remainder without material detriment thereto the tribunal may in its absolute discretion determine and order that the costs charges and expenses incurred by the owner incident to the determination of any matters under this section shall be borne and paid by the owner :
- (6) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto (and whether or not they shall determine that any other portion can be so severed) the Company may withdraw their notice to treat and thereupon they shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice :
- (7) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto but that any such other portion as aforesaid can be so severed the Company in case they shall not withdraw the notice to treat shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice or such portion thereof as the tribunal shall having regard to the circumstances of the case and their final determination think fit.

The provisions of this section shall be in force notwithstanding anything in the Lands Clauses Consolidation Act 1845 contained and nothing contained in or done under this section shall be held as determining or as being or implying an admission that any of the scheduled properties or any part thereof is or is not or but for this section would or would not be subject to the provisions of section 92 of the Lands Clauses Consolidation Act 1845.

The provisions of this section shall be stated in every notice given thereunder to sell and convey any premises.

65. The Company the Joint Committee and the Committee respectively and their respective surveyors officers contractors and workmen may at all reasonable times in the day upon

giving for the first time twenty-four hours and afterwards twelve hours previous notice in writing enter upon and into the lands houses and buildings by this Act authorised to be taken and used by them respectively for the purpose of surveying and valuing the said lands houses and buildings without being deemed trespassers and without being subject or liable to any fine penalty or punishment on account of entering or continuing upon any part of the said lands houses and buildings.

A.D. 1914.

enter upon
property for
survey and
valuation.

66. The tribunal to whom any question of disputed purchase-money or compensation under this Act is referred shall if so required by the Company the Joint Committee or the Committee as the case may be (in this section respectively referred to as "the purchasers") award and declare whether a statement in writing of the amount of compensation claimed has been delivered to the purchasers by the claimant giving sufficient particulars and in sufficient time to enable the purchasers to make a proper offer and if the tribunal shall be of opinion that no such statement giving sufficient particulars and in sufficient time shall have been delivered and that the purchasers have been prejudiced thereby the tribunal shall have power to decide whether the claimant's costs or any part thereof shall be borne by the claimant Provided that it shall be lawful for any judge of the High Court to permit any claimant after seven days' notice to the purchasers to amend the statement in writing of the claim delivered by him to the purchasers in case of discovery of any error or mistake therein or for any other reasonable cause such error mistake or cause to be established to the satisfaction of the judge after hearing the purchasers if they object to the amendment and such amendment shall be subject to such terms enabling the purchasers to investigate the amended claim and to make an offer de novo and as to postponing the hearing of the claim and as to costs of the inquiry and otherwise as to such judge may seem just and proper under all the circumstances of the case Provided also that this section shall be applicable only in cases where the notice to treat under the Lands Clauses Consolidation Act 1845 either contained or was endorsed with a notice of the effect of this section.

Costs of
arbitration in
certain cases.

67. In settling any question of disputed purchase-money or compensation payable under this Act by the Company the Joint Committee or the Committee as the case may be the

Compensa-
tion in cases
of recently
altered
buildings.

A.D. 1914. tribunal settling the same shall not award any sum of money for or in respect of any improvement alteration or building made or for or in respect of any interest in lands created after the thirtieth day of November one thousand nine hundred and thirteen if in the opinion of such tribunal the improvement alteration or building or the creation of the interest in respect of which the claim is made was not reasonably necessary and was made or created with a view to obtaining or increasing compensation under this Act.

Stopping up roads and footpaths in case of diversion.

68. Where this Act authorises the diversion of a road or footpath or the making of a new road or footpath and the stopping up of an existing road or footpath or any portion thereof by the Company such stopping up shall not take place until the new road or footpath is completed to the satisfaction of the road authority and is open for public use or in case of difference between the Company and the road authority until two justices shall have certified that the new road or footpath has been completed to their satisfaction and is open for public use.

Before applying to the justices for their certificate the Company shall give to the road authority seven 'days' notice in writing of their intention to apply for the same.

As from the completion of the new road or footpath to the satisfaction of the road authority or as from the date of the said certificate as the case may be all rights of way over or along the existing road or footpath or portion authorised to be stopped up shall be extinguished and the Company may subject to the provisions of the Railways Clauses Consolidation Act 1845 with respect to mines lying under or near to the railway appropriate and use for the purposes of their undertaking the site of the portion of road or footpath stopped up as far as the same is bounded on both sides by lands of the Company :

Provided that the Company shall make full compensation to all parties interested in respect of any private rights of way extinguished by virtue of this section and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement.

Provisions as to repair of roads and footpaths.

69. Subject to the provisions of this Act any road or footpath or portion of road or footpath made diverted or altered under the authority of this Act (except the stone iron or other

structure carrying any such road or footpath over the railway which structure shall unless otherwise agreed be maintained by and at the expense of the Company) shall when made and completed unless otherwise agreed be maintained at the expense of and (except to the extent to which the Company may desire to maintain the same where situate on their property) by the same parties in the same manner and to the same extent as other roads and footpaths of the same nature within the parish or place in which such road or footpath or portion of road or footpath will be situate are from time to time liable to be maintained.

A.D. 1914.

70.—(1) The Company shall not under the powers of this Act purchase or acquire in any urban district in Ireland any house or houses occupied either wholly or partially by thirty or more persons belonging to the working class as tenants or lodgers unless and until the Company shall have—

Restriction on displacing persons of working class.

(A) Obtained the approval of the Local Government Board for Ireland (in this section called “the Board”) to a scheme for providing new dwellings for such number of persons residing in such houses or for such number or proportion of such persons as the Board shall after inquiry deem necessary having regard to the number of persons residing in such houses and working within one mile therefrom and to the amount of vacant suitable accommodation in the immediate neighbourhood of such houses or to the place of employment of such persons and to all the circumstances of the case; and

(B) Given security (if required) to the satisfaction of the Board for the carrying out of the scheme.

(2) The approval of the Board to any scheme under this section may be given either absolutely or conditionally and after the Board have approved of any such scheme they may from time to time approve either absolutely or conditionally of any modifications in the scheme which may be proposed by the Company.

(3) Every scheme under this section shall contain provisions prescribing the time within which it shall be carried out and shall require the new dwellings proposed to be provided under the scheme to be completed and rendered fit for occupation before the persons residing in the houses in respect of which the scheme is made are displaced:

A.D. 1914.

Provided that the Board may dispense with the last-mentioned requirement subject to such conditions (if any) as they may see fit.

(4) Any provisions of any scheme under this section or any conditions subject to which the Board may have approved of any scheme or of any modifications of any scheme or subject to which they may have dispensed with the requirement mentioned in the last preceding subsection shall be enforceable by a writ of Mandamus to be obtained by the Board out of the High Court.

(5) If the Company acquire or appropriate any house or houses for the purposes of this Act in contravention of the foregoing provisions or displace or cause to be displaced the persons residing in any house or houses in contravention of the requirements of the scheme they shall be liable to a penalty of five hundred pounds in respect of every such house which penalty shall be recoverable by the Board by action in the High Court and shall be carried to and form part of the Consolidated Fund of the United Kingdom. Provided that the Court may if it think fit reduce such penalty.

(6) For the purpose of carrying out any scheme under this section the Company may appropriate any lands for the time being belonging to them or which they have power to acquire and may purchase such further lands as they may require and for the purpose of any such purchase sections 202 203 and 214 of the Public Health (Ireland) Act 1878 as amended by any subsequent enactment shall be incorporated with this Act and shall apply to the purchase of lands by the Company for the purposes of any scheme under this section in the same manner in all respects as if the Company were a sanitary authority within the meaning of the Public Health (Ireland) Act 1878 and the scheme were one of the purposes of that Act.

(7) The Company may on any lands belonging to them or purchased or acquired under this section or any Provisional Order issued in pursuance of this section erect such dwellings for persons of the working class as may be necessary for the purpose of any scheme under this section and may sell demise or let or otherwise dispose of such dwellings and any lands purchased or acquired as aforesaid and may apply for the purposes of this section to which capital is properly applicable or any of such purposes any moneys which they may be authorised to raise or apply for the general purposes of their undertaking :

Provided that all lands on which any buildings have been erected or provided by the Company in pursuance of any scheme under this section shall for a period of twenty-five years from the date of the scheme be appropriated for the purpose of such dwellings and every conveyance demise or lease of such lands and buildings shall be endorsed with notice of this enactment. Provided also that the Board may at any time dispense with all or any of the requirements of this subsection subject to such conditions (if any) as they may see fit. A.D. 1914.

(8) So much of section 41 of the Public Health (Ireland) Act 1878 as provides that the provisions of that section and of the two preceding sections of the same Act shall not apply to buildings belonging to any railway company and used for the purposes of such railway under any Act of Parliament shall not apply to buildings erected or provided by the Company for the purpose of any scheme under this section.

(9) The Board may direct any inquiries to be held which they may deem necessary in relation to any scheme under this section and for giving effect to any of the provisions of this section and the inspectors of the Board shall for the purposes of any such inquiry have all such powers as they have for the purposes of inquiries directed by the Board under the Public Health (Ireland) Act 1878.

(10) The Company shall pay to the Board a sum to be fixed by the Board in respect of the preparation and issue of any Provisional Order in pursuance of this section and any expenses incurred by the Board in relation to any inquiries under this section including the expenses of any witnesses summoned by the inspector and a sum to be fixed by the Board not exceeding three guineas a day for the services of such inspector.

(11) For the purposes of this section the expression "house" means any house or part of a house occupied as a separate dwelling and the expression "working class" means mechanics artizans labourers and others working for wages hawkers costermongers persons not working for wages but working at some trade or handicraft without employing others except members of their own family and persons other than domestic servants whose income in any case does not exceed an average of thirty shillings a week and the families of any of such persons who may be residing with them.

A.D. 1914.

Provisions
relating to
undertaking
of Totten-
ham Com-
pany.

71. As on and from the first day of January one thousand nine hundred and fourteen—

(1) The undertaking of the Tottenham Company may be worked and managed by the Company in the same manner and to the same extent as if the same were part of the undertaking of the Company and as from the said date every enactment in force immediately before such date whereby or by virtue whereof—

(i) Any ordinary or other meeting of the Tottenham Company or the directors is or may be required to be held or convened;

(ii) Any directors auditors or book-keepers are required to be elected or appointed by the Tottenham Company or the directors as the case may be;

(iii) The directors are required to keep or prepare or cause to be kept or prepared any accounts balance sheet or scheme;

shall so far as any such enactment imposes an obligation with respect to any such matters as aforesaid cease to apply in relation to the undertaking of the Tottenham Company:

(2) The register of shareholders the shareholders' address book the register of transfers the register of debenture stockholders and all other registers and books which shall have been provided by the Tottenham Company shall be handed over to the Company and thereupon all the rights powers and obligations with respect to the provision and keeping of such registers and books shall be transferred to and undertaken by the Company and for the purpose of any enactment relating thereto the expressions therein "the Company" "the directors" and "the secretary" shall respectively mean the Company the directors of the Company and the secretary of the Company:

Provided that for the purposes of section 17 of the Companies Clauses Consolidation Act 1845 the ordinary meeting therein referred to shall mean the ordinary meeting of the Company but nothing herein contained shall affect the application of subsection (2) of section 4 of the Railway Companies (Accounts and Returns) Act 1911:

(3) The directors and the auditors appointed by the Tottenham Company and in office on the said first day of January one thousand nine hundred and fourteen shall as from such date cease to hold such office : A.D. 1914.

(4) In this section the expression "the directors" means the directors of the Tottenham Company.

72. Section 21 of the Midland Railway (London Tilbury and Southend Railway Purchase) Act 1912 shall (so far as the same requires the Company to apply to Parliament for such powers as may be necessary in relation to a scheme for working traffic by electrical power by the direct route between Fenchurch Street Station and Southend-on-Sea) be read and construed as if the session of one thousand nine hundred and sixteen had been therein referred to instead of the session of one thousand nine hundred and fourteen. Amendment of section 21 of Midland Railway (London Tilbury and Southend Railway Purchase) Act 1912.

73. The period limited by the Cheshire Lines Act 1903 for the completion of the railways at Toxteth Park Liverpool by that Act authorised as extended by the Midland Railway Act 1911 is hereby further extended for a period of three years from the twenty-first day of July one thousand nine hundred and fourteen and sections 22 and 23 of the said Act of 1903 shall be read and construed as if the period by this Act limited for the completion thereof had been the period limited by that Act. Extension of time for completion of railways at Toxteth Park Liverpool.

If the said railways be not completed within the said period of three years then on the expiration of that period the powers of the said Act of 1903 and this Act respectively granted to the Committee for making and completing the same or otherwise relating thereto shall cease except as to so much thereof as shall then be completed.

74. The powers granted by the Rotherham Maltby and Laughton Railway Act 1905 as extended by the Midland Railway Act 1911 for the compulsory purchase of lands for the purposes of Railways Nos. 1A 1B and 1C authorised by the said Act of 1905 are hereby revived and extended and may be exercised by the Great Central and Midland Joint Committee during a period of three years from the fourth day of August one thousand nine hundred and thirteen. Revival of powers for purchase of lands for certain railways authorised by Rotherham Maltby and Laughton Railway Act 1905.

75. The period limited by the Rotherham Maltby and Laughton Railway Act 1905 for the completion of Railways Nos. 1A 1B and 1C by that Act authorised as extended by the Midland Railway Act 1911 is hereby further extended for a Extension of time for completion of certain railways

A.D. 1914.
authorised
by Rother-
ham Maltby
and Laugh-
ton Railway
Act 1905.

period of three years from the fourth day of August one thousand nine hundred and fourteen and sections 35 and 36 of the said Act of 1905 shall be read and construed as if the period by this Act limited for the completion thereof had been the period limited by that Act.

If the said railways be not completed within the said period of three years then on the expiration of that period the powers of the said Act of 1905 and this Act respectively granted for making and completing the same or otherwise relating thereto shall cease except as to so much thereof as shall then be completed.

Abandon-
ment of por-
tion of
Ashby and
Nuneaton
Lines.

76. The London and North Western and Midland Joint Committee may abandon and discontinue the maintenance and use of the following railway and portion of railway authorised by the Midland Railway (Ashby and Nuneaton &c.) Act 1866 and vested in the said Committee by the London and North Western Railway (Ashby and Nuneaton Lines) Act 1867 (that is to say):—

(A) Railway No. 3; and

(B) So much of Railway No. 1 as lies between Stoke Golding and the said Railway No. 3;

and the said Committee may appropriate for the general purposes of their undertaking the site and soil of the said railway and portion of railway or may sell lease or otherwise dispose of the same.

For pro-
tection of
Hinckley
Rural Dis-
trict Council.

77. Notwithstanding anything contained in the section of this Act whereof the marginal note is "Abandonment of portion of Ashby and Nuneaton Lines" the following provisions shall apply and have effect between the London and North Western and Midland Joint Committee (in this section referred to as "the Committee") and the Hinckley Rural District Council (in this section referred to as "the council") :—

(1) The Committee shall continue to maintain at their own expense any bridge carrying any road in the rural district of the council over the abandoned railway together with the approaches thereto and the surface of any road upon such bridge and approaches. Provided that if the Committee shall at any time after the passing of this Act provide to the satisfaction of the council a new road or new roads at or about the

original level of the road or roads before the said bridges were constructed and adjoining the said existing bridges and approaches or any or either of them any such new roads shall upon the completion thereof and thereafter be maintained by and at the expense of the council: A.D. 1914.

- (2) Upon the completion of any such new road the Committee shall forthwith dedicate to the public the soil and site of the said new road:
- (3) From and after the dedication to the public of any such new road all rights of way over the present corresponding bridge and over the approaches thereto shall be stopped up and extinguished and the liability of the Committee to maintain such bridge and approaches and the roadway over the same respectively shall cease:
- (4) If any difference shall arise between the Committee and the council under this section such difference shall be determined by an arbitrator to be appointed failing agreement by the President of the Institution of Civil Engineers and the provisions of the Arbitration Act 1889 and any statutory modification thereof shall apply to any such arbitration.

78. Notwithstanding anything contained in the section of this Act whereof the marginal note is "Abandonment of portion of Ashby and Nuneaton Lines" the following provisions shall apply and have effect between the London and North Western and Midland Joint Committee (in this section referred to as "the Committee") and the Leicestershire County Council (in this section referred to as "the council") :—

For protection of Leicestershire County Council.

- (1) The Committee shall forthwith construct and form in the parish of Hinckley a new road in the position and according to the levels shown upon the plan and section signed in duplicate by Rupert Gwynne the Chairman of the Committee of the House of Commons to whom the Bill for this Act was referred and thereon coloured pink (one copy of which plan and section has been deposited in the Parliament Office of the House of Lords and one copy in the Private Bill Office of the House of Commons) The said new road shall be constructed with similar materials to

A.D. 1914.
—

and as far as circumstances will admit in conformity with the existing road on the side of the said new road and shall be carried out and completed at the expense of the Committee to the reasonable satisfaction of the surveyor to the council Provided that the Committee shall be at liberty to use for the new road the road metalling on the existing road and approaches thereto :

- (2) If the said new road is not completed before the thirty-first day of December one thousand nine hundred and fifteen the council may themselves carry out and complete the said work and the Committee shall on demand pay to the council the cost thereof of which the certificate of the surveyor to the council shall be final and conclusive evidence :
- (3) During the construction of the said new road the Committee shall be at liberty to and may for a period of not more than four months divert over the route shown upon the key plan drawn upon the said signed plan all traffic desiring to pass over the existing road bridge and its approaches :
- (4) Upon the completion of the said new road the Committee shall forthwith dedicate to the public the soil and site of the said new road and thereafter the said road shall be maintained by and at the expense of the council :
- (5) The Committee shall subject to the provisions of subsections (2) and (3) of this section until the completion of the said road continue to maintain at their own expense the existing bridge shown on the said plan and the approaches thereto and the surface of the road :
- (6) From and after the dedication to the public of the said new road all rights of way over the present bridge and over so much of the approaches thereto as is not coloured pink on the said plan shall be stopped up and extinguished :
- (7) If any difference shall arise between the Committee and the council under this section such difference shall be determined by an arbitrator to be appointed failing agreement by the President of the Institution of Civil

Engineers and the provisions of the Arbitration Act 1889 and any statutory modification thereof shall apply to any such arbitration. A.D. 1914. —

79. The Company the Joint Committee or the Committee as the case may be shall be deemed not to be an owner or occupier for the purposes of section 150 of the Public Health Act 1875 or of section 28 of the Public Health (Ireland) Act 1878 as amended by any subsequent enactment in respect of any land acquired or used by the Company the Joint Committee or the Committee under the powers or for the purposes of this Act upon which any street as defined by the Public Health Acts and not being a highway repairable by the inhabitants at large or as defined by the said Act of 1878 as so amended as aforesaid and not being for the purposes mentioned in the last-named section in charge of the local authority a county council or other public body shall wholly or partially front adjoin or abut and which shall at the time of the laying out of such street be used by the Company the Joint Committee or the Committee solely as a part of their lines of railway or sidings stations or works and shall have no direct communication with such street and the expenses incurred by any urban or rural authority under the powers of either of the said sections which but for this provision the Company the Joint Committee or the Committee would be liable to pay shall be repaid to the urban or rural authority as the case may be by the owners of the premises fronting adjoining or abutting on the said street other than the Company the Joint Committee or the Committee and in such proportions as shall be settled by the surveyor of the urban or rural authority as the case may be and in the event of the Company the Joint Committee or the Committee subsequently making a communication with such street they shall notwithstanding such repayment as last aforesaid pay to the urban or rural authority as the case may be the expenses which but for the foregoing provision the Company the Joint Committee or the Committee would in the first instance have been liable to pay and the urban or rural authority as the case may be shall divide among the owners for the time being other than the Company the Joint Committee or the Committee the amount so paid by the Company the Joint Committee or the Committee to the urban or rural authority as the case may be less the cost and expenses attendant upon such division in such proportion as shall be settled by the said surveyor whose decision shall be final and

Railways &c.
abutting but
not com-
municating
with streets
not to be
chargeable
with private
street
expenses.

A.D. 1914. — conclusive Provided that this section shall not apply to any street existing at the date of the passing of this Act.

Power to
lease lands
&c.

80. And whereas lands have from time to time been purchased or acquired by the Company but such lands are not immediately required for the purposes of the Company and it is expedient that further powers should be conferred upon the Company with respect to such lands Therefore notwithstanding anything contained in the Lands Clauses Consolidation Act 1845 or in any other Act with which that Act is incorporated the Company shall not be required to sell or dispose of any such lands or any lands acquired under the powers of this Act which may not be immediately required for the purposes of the Company but may retain hold or use or may lease or otherwise dispose of the same.

For the purposes of this section the expression “the Company” means and includes in addition to the Company any Joint Committee incorporated by Act of Parliament on which the Company may be represented and for the purposes of any land held or enjoyed by the Company jointly with any other company or companies means and includes the Company and such other company or companies.

Power to
Company to
raise ad-
ditional
money by
creation of
stock.

81. The Company may subject to the provisions of Part II. of the Companies Clauses Act 1863 raise by the creation and issue of new preferred converted ordinary stock and new deferred converted ordinary stock or of Midland Railway two and a half per centum perpetual preference stock such sums of money as they shall think necessary not exceeding one million pounds exclusive of the other moneys which they are or may be by any other Act or Acts of Parliament authorised to raise If and so far as any such moneys are raised by the creation and issue of new preferred and new deferred converted ordinary stock the Company shall raise the same by the creation and issue of the said stocks in equal proportions And any preference stock created under the powers of this section shall be deemed to be part of and shall rank *pari passu* with and shall confer the like privileges and shall bear the same dividend and be subject to the like restrictions as the existing Midland Railway two and a half per centum perpetual preference stock.

Qualifica-
tions of new
stock.

82. Except as by or under the powers of this Act otherwise provided all new preferred and new deferred converted ordinary stock issued under the powers of this Act shall in proportion to

the amount of stock held by the same person at the same time entitle the respective holders of such new stock to the same dividends and profits and confer on them the like qualifications and the like rights of voting as the like amount paid up on the existing stock of the Company other than and except stock to which any guaranteed or preferential dividend of a fixed amount without further participation in the profits of the Company shall have been assigned. A.D. 1914.

83. The Company may subject to the provisions of this Act borrow on mortgage of the undertaking or raise by the creation and issue of debenture stock subject to the provisions of Part III. of the Companies Clauses Act 1863 and of section 55 of the Midland Railway Act 1894 any sum or sums not exceeding in the whole one-third part of the amount of the additional capital by this Act authorised to be raised and at the time actually issued by stock. Power to borrow.

But no part thereof shall be borrowed until the whole of the capital stock at the time issued shall have been fully paid up and the Company have proved to the justice who is to certify under the fortieth section of the Companies Clauses Consolidation Act 1845 before he so certifies that such stock has been issued and accepted and fully paid up and upon production to such justice of the books of the Company and of such other evidence as he shall think sufficient he shall grant a certificate that the proof aforesaid in reference to such capital has been given which certificate shall be sufficient evidence thereof.

84. Every provision in any Act passed before the present session of Parliament whereby the Company is authorised to raise by borrowing money for the purposes of their undertaking with respect to the appointment of a receiver for enforcing payment by the Company of arrears of interest or principal or principal and interest shall be and the same is hereby repealed but without prejudice to any appointment which may have been made or to the continuance of any proceedings which may have been commenced prior to the passing of this Act under any such provision. Provisions with respect to appointment of a receiver.

The mortgagees of the Company may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver And in order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the

A.D. 1914. application for a receiver is made shall not be less than ten thousand pounds in the whole.

Existing mortgages to have priority.

85. All mortgages and bonds granted by the Company in pursuance of the powers of any Act of Parliament before the passing of this Act and subsisting at the passing hereof shall during the continuance of such mortgages and bonds and subject to the provisions of the Acts under which such mortgages and bonds were respectively granted have priority over any mortgages granted by virtue of this Act but nothing in this section contained shall affect any priority of the interest of any debenture stock at any time created and issued by the Company.

Power to issue stock warrants and debenture stock certificates to bearer.

86. The Company may with respect to the whole or any portion of fully paid up stock or share capital or debenture stock created or to be created by them and subject to such regulations as may from time to time be made by the Company issue under their common seal warrants and certificates (hereinafter severally referred to as a "stock warrant to bearer" and a "debenture stock certificate to bearer") stating that the bearer of the warrant or certificate is entitled to the stock or shares or the debenture stock (as the case may be) therein specified and may provide by coupons whether attached to the warrant or certificate or not for the payment of dividends or interest as the case may be on the stock or shares or debenture stock specified in the warrant or certificate:

Provided always that nothing in this Act contained shall require the holder of any stock shares or debenture stock issued prior to the passing of this Act to accept a stock warrant to bearer or a debenture stock certificate to bearer (as the case may be) for such stock shares or debenture stock or any part thereof.

Effect of stock warrant and debenture stock certificate to bearer.

87. A stock warrant to bearer or debenture stock certificate to bearer shall entitle the bearer thereof to the stock or shares or debenture stock therein specified and such stock shares or debenture stock may be transferred by delivery of the warrant or certificate.

Entries in register on issue of stock warrants or debenture stock certificates to bearer.

88. On the issue of a stock warrant to bearer or a debenture stock certificate to bearer in respect of any portion of stock or share capital or debenture stock the Company instead of making in the register of shareholders or shareholders address book or in the register of debenture stockholders with reference to such portion of stock or share capital or debenture stock the entries provided for by the Companies Clauses Consolidation Act 1845 or

by any other Act or Acts relating to the Company shall strike out of such register of shareholders shareholders address book or register of debenture stockholders (as the case may be) the name of the person (if any) then entered therein as holding such stock shares or debenture stock (as the case may be) and the other particulars with reference to such stock shares or debenture stock contained in such register or address book and shall enter in the register the following particulars:—

A.D. 1914.

- (1) The fact of the issue of the stock warrant to bearer or debenture stock certificate to bearer:
- (2) A statement of the amount of the portion of stock or share capital or debenture stock (as the case may be) specified in the warrant or certificate:
- (3) The date of the issue of the warrant or certificate.

The provisions of the Companies Clauses Consolidation Act 1845 and of any other Act or Acts relating to the Company as to the register of holders of shares as to certificates of shares and transfer and transmission of shares and as to certificates and registration of debenture stock shall not apply in the case of a stock warrant to bearer or a debenture stock certificate to bearer respectively.

89. The bearer of a stock warrant to bearer or a debenture stock certificate to bearer shall on—

Registration of holders of stock shares or debenture stock on surrender of warrant or certificate.

- (A) Surrendering for cancellation the warrant or certificate with all coupons issued in respect thereof and for the time being outstanding;
- (B) Complying with such regulations as may from time to time be made by the Company for the purpose of enabling the Company to ascertain the name address and description of the bearer and for obtaining a specimen of his signature;
- (C) Paying to the Company all stamp or other Government duties (if any) which may be payable by the Company in consequence of the surrender; and
- (D) Paying to the Company such fee not exceeding five shillings as the Company may prescribe;

be entitled to have his name entered in the register of stockholders or shareholders or in the register of debenture stockholders (as the case may be).

A.D. 1914.

As to rights
of holders of
stock war-
rants to
bearer.

90. The bearer of a stock warrant to bearer shall subject to the provisions of this Act be deemed to be a stockholder or shareholder of the Company for all purposes. Provided that the stock or shares specified in a stock warrant to bearer shall not be taken into account in determining the qualification of the bearer of such warrant to be a director of the Company.

Voting
certificates.

91.—(1) Any bearer of a stock warrant to bearer desiring—

(A) To attend or vote (whether personally or by proxy) or exercise any of the rights of a stockholder or shareholder at any meeting of the Company; or

(B) To make or be a party to making a requisition for an extraordinary meeting of the Company;

in respect of the stock or shares specified in such warrant shall three days at least before the date appointed for the meeting in the first case and before the requisition is lodged at the office of the Company in the second case deposit such stock warrant at the office of the Company together with a statement in writing of his name and address.

(2) Upon such deposit as aforesaid being made the Company shall issue to the person making the same a certificate (herein-after referred to as a “voting certificate”) stating the name and address of the bearer of the stock warrant to bearer so deposited or (at his option) of some person (being a stockholder or shareholder of the Company) to be nominated by him as his proxy and the amount of stock or the number of shares specified in such warrant.

(3) A voting certificate shall entitle the person named therein—

(A) To attend and vote and exercise any of the rights of a stockholder or shareholder at any meeting of the Company held while such voting certificate shall be outstanding; and

(B) To make or be a party to making a requisition for an extraordinary meeting of the Company or (in the event of the directors of the Company (herein-after called “the directors”) failing upon any such requisition being made to call an extraordinary meeting within the period prescribed by the Companies Clauses Consolidation Act 1845) to call or to be a party to calling an extraordinary meeting of the Company;

in like manner in all respects as if such person were the registered holder of the stock or shares specified in the voting certificate but no such rights as aforesaid shall be exercised in respect of the stock or shares specified in a stock warrant to bearer otherwise than in accordance with the provisions of this section or except— A.D. 1914.

(i) While the voting certificate issued upon the deposit of such stock warrant shall be outstanding; and

(ii) Upon production of such voting certificate whenever so required by a director or officer of the Company.

(4) Upon the surrender to the Company at any time of a voting certificate the Company shall deliver up to the person surrendering such certificate the stock warrant to bearer in respect of which such voting certificate was issued and shall forthwith effectually cancel such voting certificate but until such surrender any stock warrant to bearer deposited with the Company pursuant to the provisions of this section shall remain so deposited.

(5) Except as expressly provided by this section a voting certificate shall not confer any rights upon the person named therein or other the holder thereof or be deemed to constitute any evidence as to the ownership of the stock or shares specified therein.

(6) The Company shall not be responsible for ascertaining that the holder of a stock warrant to bearer or of a voting certificate is lawfully entitled to the stock or shares specified in such warrant or to such voting certificate or be liable to make good any loss incurred by any person by reason or in consequence of any such voting certificate being issued to the holder of any such warrant or of any such warrant being delivered up to the holder of any such voting certificate.

92. No person shall as bearer of any stock warrant to bearer be entitled to exercise any of the rights of a stockholder or shareholder of the Company (save as herein-before expressly provided in respect of meetings) without producing the warrant and stating his name and address. Stock warrants to be produced.

93. Any notice or intimation required to be given to stockholders or shareholders of the Company under the provisions of the Companies Clauses Consolidation Act 1845 or any Act amending the same or any other Act relating to the Company As to notices to bearers of stock warrant.

A.D. 1914. may in the case of the bearers of stock warrants to bearer be given by advertising the notice once in two newspapers published in London such advertisements to be inserted within the period (if any) prescribed for the giving of such notice.

Loss or
destruction
of warrant
certificate
coupon or
voting
certificate.

94. If a stock warrant to bearer or debenture stock certificate to bearer or coupon or voting certificate is lost or destroyed then upon—

- (A) Proof to the satisfaction of the directors of the ownership of such lost or destroyed warrant or debenture stock certificate or coupon or voting certificate and of the loss or destruction thereof;
- (B) The giving of such indemnity to the Company and the directors as the directors deem adequate;
- (C) Payment of all stamp and other Government duties (if any) payable in respect of the new warrant or certificate or coupon; and
- (D) Payment to the Company of a fee of five shillings;

a new stock warrant to bearer or debenture stock certificate to bearer or coupon or voting certificate as the case may be in lieu of the warrant debenture stock certificate coupon or voting certificate so lost or destroyed shall be issued by the Company and in the case of the issue of a new stock warrant to bearer or debenture stock certificate to bearer or coupon an entry of such issue shall be made by the secretary of the Company in the register of shareholders or register of debenture stockholders.

As to joint
stockholders
or share-
holders.

95. If several persons be or claim to be jointly entitled to the stock or shares specified in a stock warrant to bearer then as between the Company on the one hand and such persons on the other hand—

- (A) One only of such persons shall be deemed the sole proprietor of such stock or shares; and
- (B) In case of any dispute between such persons such one of them as shall be the actual holder of the stock warrant to bearer shall be deemed such sole proprietor.

Trustees
unless ex-
pressly
authorised
not em-
powered

96. A trustee unless authorised by the terms of his trust shall not apply for or hold a stock warrant to bearer or debenture stock certificate to bearer issued under the authority of this Act but nothing in this section shall impose upon the Company

any obligation to inquire whether the person applying for a stock warrant to bearer or debenture stock certificate to bearer is or is not a trustee or being a trustee is or is not so authorised as aforesaid or subject them to any liability in the event of their issuing to a trustee a stock warrant to bearer or debenture stock certificate to bearer.

A.D. 1914.
to hold
bearer
securities.

97. All moneys raised under this Act whether by stock debenture stock or borrowing shall be applied only to the purposes of this Act and of any other Act of the present session of Parliament and to the general purposes of the undertaking of the Company being in each case purposes to which capital is properly applicable.

Application
of moneys.

98. The Company may apply for or towards all or any of the purposes of this Act and for or towards the general purposes of their undertaking being in each case purposes to which capital is properly applicable any sums of money which they have already raised or are authorised to raise by any of their Acts and which are not required for the purposes to which they are by those Acts made specially applicable.

Company
may apply
corporate
funds.

99. The Joint Committee the Committee the Great Central Railway Company and the Great Northern Railway Company respectively may apply to the purposes of this Act in which they are respectively interested and to which capital is properly applicable any sums of money which they have already raised or are authorised to raise by any of their Acts and which are not required for the purposes to which they are by those Acts made specially applicable.

Power to
other com-
panies and
committees to
apply funds.

100. No interest or dividend shall be paid out of any share or loan capital which the Company are by this or any other Act authorised to raise to any shareholder on the amount of the calls made in respect of the shares held by him but nothing in this Act shall prevent the Company from paying to any shareholder such interest on money advanced by him beyond the amount of the calls actually made as is in conformity with the Companies Clauses Consolidation Act 1845.

Interest not
to be paid on
calls paid up.

101. The Company shall not out of any money by this Act authorised to be raised by them pay or deposit any sum which by any standing order of either House of Parliament now or hereafter in force may be required to be deposited in respect of any application to Parliament for the purpose of obtaining an

Deposits for
future Bills
not to be
paid out of
capital.

A.D. 1914. Act authorising the Company to construct any other railway or to execute any other work or undertaking.

Provision
as to general
Railway
Acts.

102. Except as otherwise expressly provided nothing in this Act contained shall exempt any of the Companies or Committees upon whom powers are conferred by this Act or their respective railways from the provisions of any general Act relating to railways or the better and more impartial audit of the accounts of railway companies passed before or after the commencement of this Act or from any future revision or alteration under the authority of Parliament of the maximum rates of fares and charges or of the rates for small parcels authorised to be taken by the said Companies or Committees respectively.

Saving
rights of
Duchy of
Lancaster.

103. Nothing contained in this Act shall extend or operate to authorise the Company to take use enter upon or in any manner interfere with any land soil water or hereditaments or any land parcel of any manor or any manorial rights or any other rights of whatsoever description belonging to His Majesty in right of His Duchy of Lancaster without the consent in writing of the Chancellor for the time being of the said Duchy first had and obtained (which consent the said Chancellor is hereby authorised to give) or take away prejudice or diminish any estate right privilege power or authority vested in or enjoyed or exerciseable by His Majesty His heirs or successors in right of His said Duchy Provided that section 78 of the Railways Clauses Consolidation Act 1845 shall be read as if the word "eighty" were substituted therein for the word "forty" so far as relates to mines or minerals belonging to His Majesty in right of His said Duchy.

Costs of
Act.

104. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company.

The SCHEDULES referred to in the foregoing Act.

A.D. 1914.

FIRST SCHEDULE.

AN AGREEMENT made this eighth day of July one thousand nine hundred and fourteen between the MIDLAND RAILWAY COMPANY (herein-after called "the Company") of the one part and the COLERAINE HARBOUR COMMISSIONERS (herein-after called "the Commissioners") of the other part.

WHEREAS the Company are promoting a Bill in Parliament for (amongst other things) the construction of a railway therein referred to as "the Coleraine Deviation" which said railway when constructed will form portion of the main line of the Company between Coleraine and Londonderry and as soon as the said railway shall have been completed for traffic the portion of the Company's main line as at present existing between Coleraine Station and the present junction with the Coleraine Harbour Railway will be used solely or mainly for the purposes of the traffic passing over the Coleraine Harbour Railway:

And whereas the Coleraine Harbour Railway is worked by the Company under an agreement dated the twenty-ninth day of July one thousand eight hundred and ninety-one and made between the Belfast and Northern Counties Railway Company of the one part and the Coleraine Harbour Commissioners of the other part and it is intended that upon the completion for traffic of the said Coleraine Deviation these presents shall be substituted for the said agreement of the twenty-ninth day of July one thousand eight hundred and ninety-one:

Now this agreement witnesseth that for the mutual considerations herein appearing the Company and the Commissioners for themselves and their respective assigns do hereby mutually agree each with the other of them as follows (that is to say):—

1. In this agreement the following expressions shall have the following meanings videlicet "The Coleraine Harbour Railway" shall mean the Railway No. 2 as described in the River Bann Navigation Act 1885.

2. This agreement is made subject to the sanction of Parliament.

3. This agreement is dependent on the Bill passing into an Act in this present session of Parliament and shall be scheduled to and confirmed by the Bill and shall be in perpetuity.

A.D. 1914.
—

4. The Company shall and will maintain in good working order and condition the Coleraine Harbour Railway the Commissioners from time to time (when called on so to do by the Company) providing or paying the reasonable cost of providing all materials requisite for the maintenance repair and renewal thereof.

5. The Company shall and will at their own expense keep open work and use the Coleraine Harbour Railway for the purpose of such traffic as shall be destined for or shall come from or over any portion of the undertaking of the Commissioners with all reasonable accommodation despatch and facilities (including through booking through invoicing through wagons trucks and other arrangements) proper and sufficient for the safe convenient carriage and delivery thereof so as fairly to work the traffic of that undertaking Provided that the Company shall subject as aforesaid be called upon only to convey the said traffic at such times on each day as the train staff or other arrangements of the Company's line may permit and as may be most convenient to them Subject to the safe and convenient working and user by the Company of the Coleraine Harbour Railway the Commissioners may use the said railway for the conveyance thereon of materials used in the construction maintenance or improvement of their undertaking.

6. The Company shall and will at their own cost provide all necessary engines and rolling stock superintendents inspectors station-masters clerks porters engine-drivers stokers guards watchmen and workmen and all other officers and servants and all materials plant and labour (except as herein-after provided) proper and convenient for the effectual working of the Coleraine Harbour Railway and the conveyance and delivery of the said traffic Provided that the Company shall not be required to nor will they erect use or work any cranes on the wharf of the Commissioners nor shall the Company provide labour for or be under any obligation in respect of the loading or unloading of goods animals minerals or other traffic into or out of the Company's wagons at the wharf of the Commissioners nor for any shunting or placing of wagons necessary for or incidental to such loading or unloading all which labour shunting or placing of wagons shall be supplied and performed by the Commissioners at their own cost.

7. The Company shall and will indemnify and save harmless the Commissioners from and against all penalties forfeitures damages losses costs charges expenses claims and demands in any way occasioned by or by reason of any act or default of the Company or any of their officers agents or contractors or the servants or workmen of the Company or their contractors with respect to the management maintenance repair working or use of the Coleraine Harbour Railway or any part thereof or any traffic or duty to be carried on or performed thereon by them under this agreement but not further or otherwise.

8. The Commissioners shall pay all rates and taxes chargeable on or in respect of the Coleraine Harbour Railway and indemnify the Company against all claims and demands if any which may be made against them in consequence of the acts or defaults of their (the Commissioners) servants or workmen. A.D. 1914.

9. Subject to the provisions of the Acts relating thereto the Commissioners shall fix the rates tolls and charges (including any terminal charges) from time to time to be charged and taken for and with respect to the Coleraine Harbour and the traffic thereon.

10. All the tolls rates and charges including any terminal charges and other revenue arising and receivable from the working and use of the Coleraine Harbour Railway except any revenue arising from the said cranes or in respect of any service performed by the Commissioners (herein-after referred to as "gross receipts") shall from time to time be paid to or taken or received by the Company and they shall in addition to any sums hereby made payable to them retain one moiety thereof for their own use and benefit as the consideration for their working and using the Coleraine Harbour Railway under this agreement and shall pay the other moiety thereof to the Commissioners for their use. Provided nevertheless that if the Commissioners should at any time without the consent of the directors of the Company first had fix the rate of charge for conveyance of any article at less than sixpence per ton or of any animal at a rate which would produce less than two shillings and sixpence a wagon the share of the Company in the rates so charged therefor shall never be less than threepence per ton or one shilling and threepence per wagon used respectively.

11. The payment to be made to the Commissioners in accordance with the foregoing article shall fall due on the thirtieth day of June and the thirty-first day of December in every year and shall be made not later than the months of September and March next following.

12. The Company shall and will at all times keep full true and proper accounts of all the traffic to which this agreement relates and of the gross receipts. The said accounts shall be kept with such details and vouchers as shall be proper and sufficient for the full explanation and for proving the correctness thereof and shall with the vouchers thereof be open at all reasonable times to the inspection and transcription of the Commissioners and their clerk solicitor manager and accountant and the Company shall and will afford all proper facilities for those purposes.

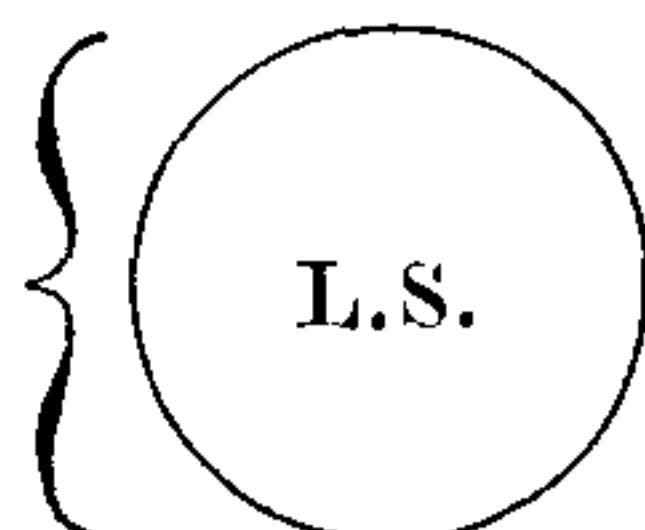
13. Within twenty-one days after the thirtieth day of June and thirty-first day of December in each year the secretary of the Company shall send to the principal office of the Commissioners a true and

A.D. 1914. — correct statement of all the traffic and receipts of the preceding half-year with all such particulars as shall be requisite for the understanding thereof.

14. If any question arises between the Company and the Commissioners touching the construction effect incidents or consequences of this agreement or as to anything to be done or not to be done or any money to be paid or any traffic to be included or any receipts to be apportioned or any expenditure to be made or any accounts to be kept or rendered thereunder or anything which is a subject matter of this agreement such question shall be determined by an arbitrator to be appointed (unless agreed on) on the application of either party by the Board of Trade and otherwise in accordance with the Common Law Procedure Act 1856 and the costs of the arbitration and of and incident to the arbitration shall be borne and paid as he shall direct.

In witness whereof the said Midland Railway Company and the said Coleraine Harbour Commissioners have respectively hereunto affixed their respective common seals the day and year first herein written.

Present when the common seal of the Midland
Railway Company was affixed hereto

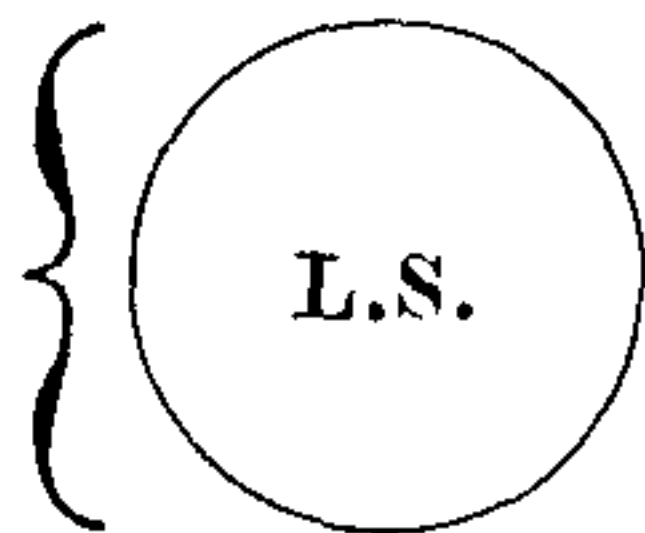


G. MURRAY SMITH

Director of the Company

Gumley Hall Market Harborough.

Present when the common seal of the Coleraine
Harbour Commissioners was affixed hereto



ANDREW CLARKE

FRED. W. CRAWFORD

} Commissioners.

W. HENRY

Secretary.

SECOND SCHEDULE.

A.D. 1914.

DESCRIBING PROPERTIES OF WHICH PARTS ONLY ARE REQUIRED TO BE
TAKEN BY THE COMPANY.

Nos. on deposited Plans.	Parish or other Area.	Description of Property.
2	Metropolitan borough of Stepney.	Saw-mill works and timber yard.
10	Do. - - -	Do.
49	Do. - - -	Iron foundry and offices.
229	Do. - - -	House stables sheds and yard.
285	Do. - - -	Saint Paul's school playground and swimming-bath.
43	Metropolitan borough of Poplar.	Gasworks and siding.
51 to 91 (both inclusive).	Do. - - -	Houses sheds and gardens.
98	Do. - - -	Mineral water works.
117	Do. - - -	Pickle factory and roadway.
193 to 198 (both inclusive).	Do. - - -	Houses sheds and yards.
48	Barking - - -	Orchard.
47	Upminster - - -	Recreation ground and pavilion.
49 and 50	Do. - - -	Houses gardens and sheds.
53	Do. - - -	Land tramway siding shed ditch and sewer.
7	Coleraine (townland of Millburn).	Arable land.
8	Do. - - -	Plantation.
9	Do. - - -	Plantation.
10	Do. - - -	Plantation.
2	Coleraine (townland of Coleraine and suburbs).	Garden.

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